GNAMMA RESEARCH

Al-Ḍarūrī

A three-level study guide

Ibn Rushd’s craft of legal reasoning

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28 questions · 84 guided lessons · 8 units

Basic - Foundations
Intermediate - Close reading
Advanced - Research

Linked readings, contextual vocabulary, worked examples, tasks, and reasoned feedback.

An editorial companion to the Arabic-English reading edition

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Gnamma Research

Open the interactive study guide

Using this companion

Choose a level for each question

Basic develops the principal problem and distinctions. Intermediate reconstructs an argument from linked passages. Advanced sets a bounded research task, explains what evidence is needed, and gives assessment criteria. A learner can change level by topic; these are modes of study, not permanent labels for readers.

Read, attempt, then check

Follow the ordered readings before the explanation. Each § link opens the stable section in the online reader. Attempt the two tasks before consulting the feedback immediately below them. Cover the feedback on paper or pause before turning to it. Use PDF bookmarks to move directly to any unit, question, or level.

Language and level

The guide is in English with technical transliteration. Arabic proficiency is separate from conceptual level. The reader provides Arabic, English and parallel display, and control over editorial vowel marks. Research tasks involving Arabic require either the relevant competence or explicit consultation of a qualified reader.

Source attribution and editorial status

The questions, explanations, examples labelled as teaching illustrations, exercises and feedback are editorial learning aids prepared with AI assistance and checked against the current reading text. They are not additional chapters or statements by Ibn Rushd. The lessons distinguish his arguments from positions he reports, and distinguish verified source comparisons from proposed research.

The Arabic reading edition follows Jamāl al-Dīn al-ʿAlawī (1994), with comparison to Ziad Bou Akl’s Arabic-French edition (2015). References to the surviving manuscript depend on the published comparator’s apparatus. This companion introduces no new manuscript collation or claim of independent peer review.

Citation keys

§ denotes the stable reader section, following al-ʿAlawī’s numbering. A gives the printed Arabic pages in al-ʿAlawī (1994). BA gives Bou Akl’s section range and the recorded starting Arabic and French printed pages. The source concordance at the back brings these together; its printed-page numbers are distinct from this companion’s page numbers.

Bidāya application links

Application references lead to the reader’s case dossiers. Their relation labels distinguish an illustrative parallel, an express methodological discussion, and a comparison involving tension. Research tasks ask for the actual source passage before a stronger historical conclusion is drawn.

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Unit 1. Purpose and method

1. What is uṣūl for?

Understand the book’s purpose, its four parts, and why Ibn Rushd gives rules of inquiry a distinctive place.

Before you begin

No previous study of uṣūl is required. Begin with the difference between knowing what to do and knowing how a conclusion is justified.

Key terms in this lesson

uṣūl al-fiqh - The discipline examining legal rulings, their sources, the means of deriving them, and the qualifications of the jurist; Ibn Rushd gives the third task special prominence.

fiqh - Knowledge of legal rulings concerning acts, such as prayer and almsgiving.

ṣināʿa - A disciplined art or craft possessing methods and rules; it does not mean merely a manual occupation here.

istiqrāʾ - Induction: in §4, establishing universal notions by examining early legal opinions case by case.

qānūn - A rule that guides inquiry and helps protect the mind against error.

Basic - Foundations

Open this lesson online

Aim. Explain why a jurist needs rules of inquiry as well as knowledge of particular rulings.

Ordered readings. §1 · §2 · §3 · §4 · §5 · §8

In §1 Ibn Rushd describes a concise reminder drawn from al-Ghazālī’s al-Mustaṣfā. Its brevity does not make it an elementary textbook. The guide therefore begins with the orientation that §8 says a learner needs: the discipline’s purpose, place among the sciences, name and divisions.

Section 2 distinguishes knowledge directed towards belief, knowledge directed towards action, and knowledge of the rules that guide inquiry. Sections 3-4 explain why later jurists need those rules stated explicitly, even though earlier jurists could exercise the relevant capacity without a separate formal discipline. Section 5 maps four inquiries: rulings, sources, derivation and the jurist.

Example: A ruler for thought

Section 2 compares rules of inquiry with a compass and straightedge. Knowing a particular prayer ruling resembles possessing an answer; knowing how evidence supports that ruling concerns the method used to reach it.

Try it before reading the feedback

1. Which of the four parts in §5 examines how a ruling is derived?
2. Does §4 say the Companions lacked the relevant reasoning capacity? Explain.

Feedback and assessment

1. The third part examines proofs and their use in deriving rulings from sources. The fourth examines who possesses the required competence.
2. No. Ibn Rushd explicitly distinguishes exercising a capacity from formally studying its rules. Their opinions can themselves supply material from which later thinkers identify universal principles.

Intermediate - Close reading

Open this lesson online

Aim. Reconstruct the relation between Ibn Rushd's preferred scientific arrangement and the arrangement he actually follows.

Ordered readings. §2 · §3 · §4 · §5 · §6 · §7 · §9 · §148

Section 6 identifies the third part as the discipline's proper inquiry because it supplies methods of derivation; the other parts concern knowledge directed towards action. Yet §7 retains al-Ghazālī's fourfold arrangement. Distinguish a claim about the most exact classification of a science from a decision about how to organize this book.

Ibn Rushd also distinguishes assuming widely accepted principles from explaining how derivation proceeds under different accepted positions. He prefers the latter as more useful to a general method. Section 148 returns to the distinctive inquiry: understanding prophetic meaning through wording and indications. Section 9's omission of the logical introduction concerns disciplinary order.

Example: Different starting commitments

In §6 Ibn Rushd proposes explaining derivation both for the Ẓāhirīs and for proponents of qiyās. The methodological task includes showing what follows from each position; the passage does not declare the positions identical.

Try it before reading the feedback

1. Why does retaining four parts in §7 not refute the classification in §6?
2. What additional work does the comparative option in §6 require?

Feedback and assessment

1. The classification identifies the discipline's distinctive function; the adopted arrangement also accommodates established teaching practice. Both claims can hold together.
2. It requires stating disputed principles and showing the rules and consequences of deriving rulings under each. Listing rival conclusions alone would not complete that task.

Advanced - Research

Open this lesson online

Aim. Formulate a defensible account of the relation between implicit practice, induction and explicit methodological rules.

Ordered readings. §2 · §3 · §4 · §6 · §7 · §9 · §148

Read §§2-4 as a connected argument. The classification of knowledge supplies a place for rules of inquiry; historical changes explain the need to articulate them; early legal opinions provide material for establishing some universal notions. The wording of §4 says many such notions, not every principle without exception.

A research comparison with logical works or al-Mustaṣfā must test this particular combination of claims. The compass analogy alone does not establish identity with demonstrative syllogistic, and omitting a logical prolegomenon in §9 does not establish hostility to logic. Distinguish the text's assertions from a proposed reconstruction of its intellectual background.

Example: An objection answered by practice

The objection in §4 points to the earliest generation's lack of formal investigation. Ibn Rushd answers by distinguishing implicit competence from explicit study and by referring to their legal opinions as evidence.

Try it before reading the feedback

1. Reconstruct that reply in three steps, preserving the limited scope of the induction claim.
2. Design one source comparison that could test whether §6's comparative method is already present in al-Mustaṣfā.

Feedback and assessment

1. A sound reconstruction identifies the objection, the capacity/study distinction, and induction from particular opinions. It must not convert a historical explanation into proof that every inherited opinion is correct.
2. Research criteria: locate an exact parallel, compare the proposed treatment of rival principles, and record agreement and divergence. A thematic resemblance or shared vocabulary is a lead, not a completed demonstration of dependence.

Unit 2. Rulings and responsibility

2. How does a ruling concern an act?

Distinguish the legal ruling, its source of authority, the person addressed and the act concerned before studying its subdivisions.

Before you begin

Know the four-part map in lesson 1. No detailed knowledge of the five rulings is assumed.

Key terms in this lesson

ḥukm - A legal ruling concerning an act; its definition and elements are examined separately in §§10-11 and §36.

khiṭāb - Address or discourse; in this discussion, the Law's address to a legally responsible person.

mukallaf - A person to whom a legally binding demand can be directed, subject to the conditions later examined.

mubāḥ - Permitted: an act for which the Law indicates equality between doing and omitting it.

wājib - Obligatory: in §17, an act preferred by the Law's address with a threat attached to its unqualified omission.

Linked Bidāya applications

B01. Marriage: one form of act, different legal rulings
Illustrative parallel. Marriage; ch. 1, preliminaries, issue 1: the legal status of marriage.

Basic - Foundations

Open this lesson online

Aim. Identify the five classifications and distinguish a ruling from the person and act to which it relates.

Ordered readings. §10 · §11 · §17 · §36

Section 10 announces four questions about rulings: definition, divisions, constituent elements and what manifests them. Section 11 begins with the definition attributed to the People of the Sunna. It also reports a disagreement about goodness and badness; keep the speakers distinct as you read.

Section 17 provides the essential map. A demand to act may be obligatory or recommended; a demand to omit may be prohibitive or disapproving; permission allows either. Section 36 then distinguishes the one who rules, the person subject to the ruling, and the matter ruled upon. These are different questions about the same legal relation.

Example: Prayer as act and ruling

Using the book's recurring prayer example, separate performing the prayer, the person addressed, and the legal demand concerning performance. Naming the act does not itself explain the character or conditions of that demand.

Try it before reading the feedback

1. What distinguishes an obligatory act from a recommended act in §17?

2. Is the person subject to a ruling the same element as the act ruled upon?

Feedback and assessment

1. Both involve a preference for performance. The definition of obligation includes a threat for unqualified omission; recommendation lacks that feature.

2. No. Section 36 separates them. Later questions about a person's understanding concern the addressee, while questions about an act's possibility concern the act.

Intermediate - Close reading

Open this lesson online

Aim. Explain how definitions, attribution and technical conventions prevent misleading summaries of the ruling discussion.

Ordered readings. §11 · §12 · §13 · §17 · §36 · §37

Section 11 reports positions of the People of the Sunna and the Muʿtazilites concerning the status of goodness and badness. Section 13 says that neither argument presented suffices to settle the question and places the issue outside the current discipline. A summary must therefore preserve more than the first reported definition.

Section 17 also separates a difference in terminology from a difference in meaning: Abū Ḥanīfa's followers use farḍ and wājib according to the certainty of the supporting judgement. Section 37 distinguishes divine ruling authority from the obedience owed to human authorities by virtue of that authority.

Example: Two names for different evidential grades

In §17 the distinction between farḍ and wājib tracks whether the relevant threat is established certainly or probably. Ibn Rushd's response requires understanding the intended distinction before disputing the names.

Try it before reading the feedback

1. Why is 'Ibn Rushd proves all goodness is relational in §11' an inadequate summary?

2. Does §17's comment about names show that certainty and probability are interchangeable?

Feedback and assessment

1. It erases the attribution of arguments and §13's judgement that the presented arguments do not settle the issue. Reported doctrine and the author's evaluation must be separated.

2. No. The evidential distinction remains intelligible. His comment addresses the use of labels once meanings have been understood; it does not erase the difference those labels mark.

Advanced - Research

Open this lesson online

Aim. Assess how theological premises enter a discipline that repeatedly limits its treatment of theology.

Ordered readings. §6 · §11 · §12 · §13 · §16 · §17 · §36 · §37

Compare §6's two ways of handling disputed principles with the procedure in §§11-17. Ibn Rushd reports doctrinal commitments, considers arguments and at points identifies consequences relevant to legal reasoning. He also declines to resolve every theological dispute within uṣūl. The boundary concerns the task and treatment of a question, rather than the absence of all theological assumptions.

Section 12 distinguishes widespread agreement from rational necessity. Section 16 differentiates positions about acts before revelation. A research account should explain why these distinctions matter without treating every reported position as Ibn Rushd's own final doctrine.

Example: Agreement is not necessity

Section 12 addresses the argument from rational persons' agreement about truthfulness and lying. Ibn Rushd denies that being widely accepted, by itself, establishes that a proposition is rationally necessary.

Try it before reading the feedback

1. Identify what §12's criticism establishes and what it leaves undecided.
2. Propose a precise comparison with al-Mustaṣfā concerning the placement and use of the goodness/badness dispute.

Feedback and assessment

1. It rejects a particular inference from acceptance to necessity. It does not by itself prove the opposite moral theory or dispose of every argument for intrinsic goodness.
2. Research criteria: compare the exact argument, its attribution, and its stated relevance to analogy or juristic error. Establish what is retained, altered or bracketed before making a claim about Ibn Rushd's overall position.

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3. What counts as obligation?

Follow the difference between an obligatory end, permitted alternatives, an extended time and the means needed to perform the act.

Before you begin

Distinguish obligation, recommendation and permission using §17 or lesson 2.

Key terms in this lesson

wājib mukhayyar - An obligation allowing a choice among a specified set of alternative acts.

wājib muwassaʿ - An obligation whose performance is permitted within an extended period rather than at one fixed instant.

sharṭ - A condition; §23 distinguishes a condition of being obliged from an obtainable means needed to perform the duty.

ẓann - Probable judgement; §25 uses a judgement about likely survival to evaluate permitted postponement.

Linked Bidāya applications

B02. Wiping the head: a minimum performance and a contested particle
Illustrative parallel. Purification from ritual impurity; Book of Wuḍūʾ, ch. 2, issue 6: the extent of wiping the head.

B16. Pilgrimage now or later: a control against a simplistic application
Explicit caution against a reductive parallel. Pilgrimage; first kind of inquiry: when the pilgrimage obligation falls due.

Basic - Foundations

Open this lesson online

Aim. Explain why a duty can allow a choice of act or time while remaining a duty.

Ordered readings. §17 · §18 · §20 · §21 · §22 · §23

Section 18 distinguishes a determinate obligation from an obligation allowing specified alternatives, and from an obligation with an extended time. Choosing one permitted way of fulfilling a duty differs from being free to abandon the duty altogether. Section 20 points to expiation alternatives and prayer periods as legal examples.

Sections 21-22 explain the apparent puzzle of an early prayer: a person may delay it, yet performing it discharges the obligation. The permission to postpone is qualified by a resolve to perform. Section 23 adds another distinction: an obtainable means, such as ritual purity for prayer, can be obligatory for the sake of the required act.

Example: Praying early in an allowed period

In §§21-22, prayer at the beginning of its period discharges the duty even though omission at that particular moment can be allowed. Permission to choose the time does not amount to permission to omit prayer entirely.

Try it before reading the feedback

1. Why does an extended period not turn the whole duty into a mere recommendation?
2. Why does §23 treat ritual purity differently from the capacity to walk?

Feedback and assessment

1. The duty still has to be discharged. Section 22 distinguishes permitted postponement with a resolve to act from resolving to abandon the act altogether.
2. Ritual purity is presented as obtainable by choice for the duty's sake. The capacity to walk is a condition of imposing a duty, not itself something commanded into existence.

Intermediate - Close reading

Open this lesson online

Aim. Separate disputes about the definition of obligation from disputes about the conditions governing postponement.

Ordered readings. §18 · §19 · §20 · §21 · §22 · §23 · §25

Sections 19-20 distinguish a metaphysical objection to alternatives from the legal evidence that such obligations occur. Sections 21-22 then address a more specific definitional objection: how can an act be obligatory now if omission now incurs no punishment? The response uses different respects and the continuing resolve to perform.

Section 25 introduces prospective judgement. A later death does not automatically show that an earlier permitted delay was disobedience. What matters is the judgement about survival under which the delay was allowed. The reported disagreement over postponing pilgrimage concerns that judgement; it is not simply a dispute over the dictionary meaning of 'command'.

Example: Unexpected death within the period

Section 25 considers a person who dies during the allotted period before performing the duty. Ibn Rushd rejects an automatic inference of disobedience and discusses the probability under which postponement was permissible.

Try it before reading the feedback

1. Distinguish permission to postpone from a prediction guaranteed to come true.
2. What does the expiation example establish in §20, and what broader issue does Ibn Rushd set aside?

Feedback and assessment

1. Permitted postponement depends on a justified expectation and the resolve to perform; subsequent events can defeat that expectation without retrospectively proving an intention to abandon the duty.
2. The example establishes the occurrence of alternatives in the Law. It does not settle the whole metaphysics of possibility, foreknowledge and human choice, which Ibn Rushd says belongs elsewhere.

Advanced - Research

Open this lesson online

Aim. Test whether the obligation discussion supplies one uniform rule or several rules with different conditions.

Ordered readings. §17 · §18 · §21 · §22 · §23 · §25 · §201

Reconstruct three distinct problems: the object demanded, the time allowed, and the conditions needed for performance. Section 23's account of necessary means distinguishes what the agent can acquire from what conditions the possibility of an obligation. Its minimum-performance discussion adds a further qualification concerning acts whose parts occur successively.

Compare §§21-25 with §201, where timing is not determined by the imperative form alone. The Bidāya application B16 is a useful control: it reports that the pilgrimage dispute involves the structure of available periods and the risk of death, beyond a simple immediacy/delay formula. Treat the card as a located parallel to investigate.

Example: How much performance is sufficient?

Section 23 uses wiping the head and remaining still in bowing when discussing the minimum to which a name applies. Application B02 shows why the corresponding fiqh dispute also requires grammatical and transmitted evidence.

Try it before reading the feedback

1. State the qualifications needed before applying 'a necessary means is obligatory' here.
2. Explain why §23 alone cannot establish every school's ruling about how much of the head must be wiped.

Feedback and assessment

1. Identify an established duty, a genuinely necessary means, and the agent's ability to acquire it. Do not convert every condition of capacity into a new commanded act.
2. The passage gives a methodological distinction. Establishing the legally relevant act and its extent requires further evidence. Research should test the verse, reported practice and competing meanings rather than read a complete ruling out of a slogan.

4. Can an act be both commanded and forbidden?

Distinguish the respect under which an act is judged, the force of prohibitive wording, and whether the act has legal effect.

Before you begin

Know the five rulings. Keep the question ‘Is this forbidden?’ separate from ‘Does this discharge a duty or produce a legal effect?’

Key terms in this lesson

ḍidd - A contrary; §28 tests incompatibility in the same thing, at the same time and in the same respect.

nahy - Prohibition or prohibitive address; the force of its wording is examined separately from the act’s legal effect.

qarīna - An accompanying indication that can affect how an expression is understood.

ṣiḥḥa - Validity; its precise meaning depends on the context and terminology identified in §56.

karāha - Disapproval, distinguished here from strict forbiddance when interpreting a prohibition.

Linked Bidāya applications

B03. Proposing over another proposal: prohibition and contractual effect
Illustrative parallel. Marriage; ch. 1, preliminaries, issue 3: proposing over another man’s proposal.

B18. Menstrual divorce: a forbidden act may still have legal effect
Illustrative parallel. Divorce; first division, ch. 2: Sunnī and irregular divorce; divorce during menstruation.

Basic - Foundations

Open this lesson online

Aim. Explain why different descriptions of one act must be distinguished before claiming a contradiction.

Ordered readings. §28 · §31 · §56

Section 28 begins with a logical condition: opposite rulings cannot attach to one act at one time in the same respect. Different times, acts or respects must be distinguished. This prepares the legal question whether a prohibited circumstance invalidates an otherwise required performance.

Section 31 considers prayer on usurped land. Ibn Rushd distinguishes the respect in which the movements are prayer from the respect in which they occupy another person’s land. His point requires attention to both descriptions. Section 56 helps distinguish legal validity from the separate question of whether conduct was blameworthy.

Example: Prayer and wrongful occupation

In §31 the same movements are described as commanded prayer and as prohibited occupation in different respects. Ibn Rushd rejects an argument that treats this combination as a contradiction simply because the physical movements are identical.

Try it before reading the feedback

1. Name the two respects in the usurped-land example.
2. Does recognizing different respects mean that the wrongful occupation becomes permitted?

Feedback and assessment

1. One concerns the performance of prayer; the other concerns occupying land without right. The identity of the bodily movement does not erase that distinction.
2. No. Separating the descriptions allows the wrong to remain wrong while its relation to the prayer's validity is examined. Validity is not a general declaration that every associated act is permissible.

Intermediate - Close reading

Open this lesson online

Aim. Follow the transition from the logic of contrary rulings to the interpretation of a qualified prohibition.

Ordered readings. §28 · §29 · §30 · §31 · §206

Section 28 reports differing accounts of an external cause and an attribute attached to the act. Section 29 then distinguishes inquiry into the verbal form of prohibition from inquiry into its established meaning. An earlier unqualified command may supply an indication for construing a later prohibition as disapproval.

Once a genuinely prohibitive meaning concerning an act under a qualification is established, Ibn Rushd says the act is invalidated insofar as it bears that qualification. Section 206 returns to this position within the discussion of expressions. Section 30's objection to placement matters: the problem partly belongs to interpreting evidence, not simply listing rulings.

Example: A prohibited place of prayer

Section 31 says that someone who permits prayer in the listed places should explain how the relevant prohibition is understood. The example connects a conclusion about validity to an interpretation of the prohibitive address.

Try it before reading the feedback

1. Why is 'every sentence in prohibitive form automatically invalidates the act' too quick?
2. How does §30 help explain the return to this question in §206?

Feedback and assessment

1. The force of the expression must first be established. Section 29 considers indications that can shift apparent forbiddance towards disapproval; the conclusion cannot bypass that interpretive step.
2. Ibn Rushd thinks the issue involves how wording signifies. Its later placement among commands and prohibitions supplies the methodological setting missing from a bare classification of rulings.

Advanced - Research

Open this lesson online

Aim. Assess the apparent tension between different-respect analysis and invalidation through a prohibited qualification.

Ordered readings. §28 · §29 · §30 · §31 · §56 · §206

Do not dissolve the tension between §31 and §§29,206 by selecting one sentence. First determine whether the prohibited matter is being treated as another respect of the act, a qualification entering the relevant legal description, or an expression whose force has been redirected. Then identify what 'invalidity' means in the context.

Applications B03 and B18 offer concrete comparisons involving a forbidden preliminary act and a forbidden divorce. Their descriptions identify illustrative parallels, not explicit cross-citations. A research account must compare the actual reasoning and relevant reports before treating either case as a direct execution of one universal formula.

Example: Menstrual divorce as a control case

Section 28 reports al-Shāfiʿī's giving effect to divorce during menstruation while locating its prohibition in the infliction of harm. Application B18 supplies an applied comparison involving validity, proper performance and the relevant report.

Try it before reading the feedback

1. What must a proposed reconciliation of §§29,31,206 explain?
2. What evidence would distinguish an interpretive disagreement from a merely terminological disagreement in a Bidāya case?

Feedback and assessment

1. It must preserve the separate-respect argument, the prior determination of prohibitive force, and the limited phrase 'insofar as' the act bears the qualification. Treat unexplained tensions as questions for further work.
2. Research criteria: identify each party's account of the prohibition, the relevant condition and the resulting legal effect. Shared use of 'valid' or 'invalid' does not establish that they mean or infer the same thing.

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5. Who can be addressed?

Distinguish understanding, a legal sign of maturity, capacity for action and legal consequences affecting someone who is not directly responsible.

Before you begin

Distinguish the person addressed from the act concerned using §36 or lesson 2.

Key terms in this lesson

taklīf - The imposition of a legally binding demand upon a person, subject to conditions of understanding and capacity.

bulūgh - Puberty, treated in §42 as a legally appointed sign because the development of reason is difficult to determine individually.

ʿaql - Reason or understanding; here relevant to comprehending the Law's address.

qudra - Capacity to act; §45 rejects imposing what lies beyond capacity.

walī - A guardian, who may be the person addressed concerning obligations connected with a child or the child's property.

Linked Bidāya applications

B04. Zakāt on a child's property: worship or a claim upon wealth?
Illustrative parallel. Zakāt; first division: those liable; property belonging to minors.

B26. A physician's mistake: compensation need not imply moral wrongdoing
Illustrative parallel. Offences and injuries; second part, compensation; accidental injury caused in medical treatment.

Basic - Foundations

Open this lesson online

Aim. Explain why absence of direct responsibility does not remove every legal consequence connected with a child.

Ordered readings. §36 · §38 · §42 · §45

Section 38 says that an obligatory address presupposes understanding it. The objection about children's property then reveals an important distinction: a legal matter can concern a child while the guardian is the person commanded to act. Similarly, the command to require a child's prayer is directed to the father.

Section 42 identifies puberty as a condition known through the Law. It is an appointed sign, because the acquisition of reason varies and is difficult to determine separately in every individual. Section 45 adds the requirement of capacity: a demand cannot simply require an impossible act.

Example: A child's property

When §38 considers alms and financial liabilities connected with children, it directs attention to the guardian. The child's lack of direct moral responsibility does not itself answer every question about the property.

Try it before reading the feedback

1. Who is the addressee in §38's response about a child's property?

2. Does §42 claim that the physical event of puberty instantly creates reason?

Feedback and assessment

1. The guardian is the legally responsible addressee in the response. Distinguish that person from the child or property to which the legal consequence relates.

2. No. The passage explicitly raises that difficulty. Puberty functions as a generally indicative legal sign where individual intellectual development is difficult to establish precisely.

Intermediate - Close reading

Open this lesson online

Aim. Reconstruct how the text distinguishes a rational condition, a legal sign and an apparently troublesome counterexample.

Ordered readings. §38 · §39 · §40 · §41 · §42 · §45

Sections 38 and 42 give different accounts of two conditions: understanding the address is apprehended by reason, whereas puberty is a condition apprehended through the Law. The second can function as a practical sign without being the physical cause of the first.

The intoxication discussion tests the first condition. Section 38 distinguishes effective divorce according to those who recognize it from straightforward proof that an unintelligent addressee understands a command. Sections 39-40 offer readings of the verse, including an address to sober persons concerning later conduct. Section 41 leaves a broader theological problem to its own discipline.

Example: An address before the relevant condition occurs

Section 40 considers the possibility that the prohibition relating to intoxication was addressed to hearers while sober. The time of receiving an intelligible address and the later condition regulated by it need not coincide.

Try it before reading the feedback

1. Why does a divorce's legal effectiveness not by itself prove full contemporaneous understanding?
2. How does the sober-addressee interpretation respond to the apparent difficulty?

Feedback and assessment

1. Section 38 treats effectiveness, where accepted, as a separate legal consequence connected with earlier voluntary conduct. A legal effect cannot simply be equated with present comprehension.
2. It preserves an intelligible address to someone able to understand it while regulating a later situation. Its adequacy must still be evaluated as an interpretation of the passage, not assumed from logical possibility alone.

Advanced - Research

Open this lesson online

Aim. Distinguish moral address, legal effects and institutional administration without reducing them to one notion of agency.

Ordered readings. §38 · §41 · §42 · §45 · §55 · §243 · §244

Build a map of three questions: who can understand a demand, what marks the condition legally, and which consequences follow from an act or state. Section 55's account of appointed signs helps clarify §42, but does not authorize treating every legal consequence as punishment for a responsible choice.

The distinction between error and sin in §243 and the qualifications in §244 provide a further comparison. Application B26 concerns compensation after a physician's mistake; B04 concerns zakāt on a child's property. Both require identifying the type of legal consequence before inferring personal culpability. Their differing contexts must remain visible.

Example: A financial claim and personal blame

Section 38 answers the objection about children's alms and financial liabilities by identifying the guardian as addressee. Application B04 develops the related dispute over whether a minor's zakāt is primarily worship or a financial right in wealth.

Try it before reading the feedback

1. What inference does the distinction between compensation and sin block?
2. What would a rigorous comparison of §42 with a modern capacity rule require?

Feedback and assessment

1. A financial consequence does not, merely by existing, establish a blameworthy act by its bearer. One must identify its legal ground and the person addressed.
2. Research criteria: compare the function of the sign, its authority, its relation to individual capacity and the consequence it triggers. Do not claim historical identity from a shared age threshold or a general concern with administrability.

6. What changes under coercion?

Distinguish the possibility of choosing, the intention of obedience, the degree of pressure and the legal effect of an act.

Before you begin

Distinguish the act's physical possibility, the person's understanding and the act's legal classification.

Key terms in this lesson

ikrāh - Coercion or pressure to act; §47 treats its means and severity as variable.

ikhtiyār - Choice: the ability to do otherwise, whose significance must be assessed alongside the pressure imposed.

iktisāb - Acquisition of an act by the agent; §§43-45 examine its relation to choice and capacity.

ṭāʿa - Obedience; §47 distinguishes doing an act under pressure from undertaking it with an understanding that it is obedience.

ijtihād - Independent juristic inquiry; the comparison of particular coercive harms in §47 is assigned to this kind of assessment.

Linked Bidāya applications

B05. Intention in ablution: devotional act and intelligible cleansing
Illustrative parallel. Purification from ritual impurity; Book of Wuḍūʾ, ch. 2, issue 1: intention as a condition of validity.

B06. Coerced divorce: voluntary utterance is not sufficient freedom
Illustrative parallel. Divorce; second division, ch. 2: the person whose divorce is legally effective; coerced divorce.

Basic - Foundations

Open this lesson online

Aim. Explain why coercion does not answer every question about choice, intention, reward and legal effect at once.

Ordered readings. §43 · §44 · §47

Sections 43-44 introduce the act as something the person can acquire by choice and connect devotional compliance with belief in the command. Section 47 then asks what pressure changes. A person may still be physically able to refuse, but the severity of what refusal would bring matters.

The passage first discusses pressure towards compliance. It distinguishes the initial motive for acting from the person's understanding of the act when undertaking it. It then discusses pressure towards violation and separates two questions: blame for yielding and the assessment of resistance. Ibn Rushd treats the degrees and comparison of harms as matters requiring legal inquiry.

Example: Pressure to perform a duty

Section 47 says that pressure may initially move a person to act, while at performance the person also understands the act as obedience. The passage therefore does not infer absence of devotional intention merely from the presence of pressure.

Try it before reading the feedback

1. Can an initial external motive and a later intention of obedience coexist in this account?
2. Does the possibility of refusing settle whether the person is legally coerced in every respect?

Feedback and assessment

1. Yes. Section 47 expressly allows this sequence when discussing reward for compliance. Identify the time at which the relevant intention is present.
2. No. The degree of threatened harm and the act demanded remain relevant. Physical alternatives alone do not complete the legal assessment.

Intermediate - Close reading

Open this lesson online

Aim. Separate the account of willing an act from the legal judgement about acting under pressure.

Ordered readings. §43 · §44 · §45 · §47

Section 44 rejects an infinite sequence of wills required to will. It explains desire in relation to assent involving hope and fear, while continuing to distinguish an act acquired by the person from an occurrence outside that person's control. Section 45 insists on meaningful human capacity.

Section 47 must be read with those distinctions rather than reduced to 'the agent moved, therefore the act was fully free'. Its final comparison of coercive harm with the prohibited act is explicitly a question for ijtihād. Application B06 further distinguishes choosing to utter words from the legal freedom required for an effective divorce.

Example: Choosing words under a threat

Application B06 reports disagreement over coerced divorce. The speaker may intentionally pronounce the words while the Law's classification of coercion and the utterance's legal effect remain disputed.

Try it before reading the feedback

1. List three questions that remain distinct in the coerced-utterance example.
2. Why cannot the last part of §47 supply one automatic result for every threat?

Feedback and assessment

1. Ask whether the words were intentionally spoken, whether the circumstances count as legal coercion, and whether the utterance produces its normal legal effect. Answers to one do not mechanically settle the others.
2. The text makes severity, the means of coercion and the kind of demanded act relevant. Comparing these is part of juristic inquiry; the passage does not give an exhaustive universal verdict.

Advanced - Research

Open this lesson online

Aim. Evaluate the relationship between the text's account of agency and its treatment of legal coercion, preserving unresolved cases.

Ordered readings. §43 · §44 · §45 · §47 · §53

The agency discussion and the coercion discussion operate at connected but different levels. Sections 44-45 defend the intelligibility of choice and capacity; §47 asks how particular pressures affect reward, blame and the evaluation of resistance. It does not infer that every physically available alternative is legally required.

Section 53 offers a useful comparison: hard cases involving unavoidable injury do not, for Ibn Rushd, overthrow the general principle about impossible demands. He presents more than

one possible analysis. An advanced reading should preserve this openness and distinguish a principle of capacity from a fully adjudicated rule for each emergency.

Example: Leaving a damaged field

In §53 a person in a usurped cultivated field causes injury whether remaining or leaving. Ibn Rushd considers reducing harm and other analyses; he does not present the predicament as proof that contradictory demands are straightforwardly imposed.

Try it before reading the feedback

1. What would have to be established before moving from ‘could resist’ to ‘was obliged to resist’?
2. Design a comparison of §47 with the Bidāya discussion located in B06.

Feedback and assessment

1. Identify the demanded act, the severity and kind of threatened harm, the relevant legal evidence and any ranking of competing claims. Bare physical possibility is insufficient.
2. Research criteria: track how each passage uses choice, coercion and legal effect; compare its examples and qualifications. Record any difference without claiming that the brief theoretical passage already resolves the entire applied dispute.

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7. Do conditions cause rulings?

Distinguish an obtainable legal condition, a condition of physical possibility and a sign through which a ruling is known to obtain.

Before you begin

Review lesson 3’s distinction between an obligatory act and an obtainable means needed for it.

Key terms in this lesson

sharṭ shar‘ī - A legal condition; §§49-50 discuss one that an agent can acquire, such as ritual purity for prayer.

sharṭ wujūdī - A condition of actual existence or possibility, distinguished from an obtainable legal condition.

sabab - A cause or occasion; §§54-55 discuss causes that manifest legal rulings, with their force appointed by the Law.

‘alāma - A sign through which it is known that a ruling obtains.

Linked Bidāya applications

B07. Financial maturity: an operative condition or its official recognition?
Illustrative parallel. Interdiction; ch. 2: release of minors from interdiction; those under an executor.

Basic - Foundations

Open this lesson online

Aim. Explain why failing to obtain a possible legal condition does not automatically remove the obligation to act.

Ordered readings. §23 · §49 · §50 · §54 · §55

Sections 49-50 ask whether a command can apply before a condition has been fulfilled. Ibn Rushd’s example is prayer before ritual purity has been acquired. Where the person can acquire the condition, the command concerns performing the act with that condition fulfilled. It does not command a valid prayer without its required purity.

Section 50 distinguishes this from lacking a condition of actual possibility. Section 55 introduces another relation: signs appointed by the Law through which rulings are known to obtain. Its comparison with perceptible causes explains a reliable connection; it does not make every legal condition a physical cause.

Example: Prayer before ablution

In §49, someone cannot remove the duty to pray merely by never performing ablution. The relevant condition is within the person's capacity, and the command concerns prayer performed after that condition is fulfilled.

Try it before reading the feedback

1. Does this argument require performing a valid prayer while still ritually impure?
2. What must be checked before extending the argument to a different missing condition?

Feedback and assessment

1. No. The command is understood on the supposition that the obtainable condition is fulfilled. It includes the required ordered performance.
2. Check whether the agent can acquire the condition and whether it is a legal condition of the act or a condition of actual possibility. The argument cannot erase genuine incapacity.

Intermediate - Close reading

Open this lesson online

Aim. Reconstruct the equivocation identified in §50 and distinguish a condition's existence from evidence of it.

Ordered readings. §42 · §49 · §50 · §54 · §55

The objection in §50 treats an act lacking its legal condition as impossible in the same sense as an act lacking a condition of actual existence. Ibn Rushd answers that the condition under discussion can be acquired. The whole ordered performance is therefore possible even though the legally complete act is not yet present.

Sections 42 and 55 add a different issue: a legally appointed sign can identify when a condition is treated as obtaining. Application B07 distinguishes actual financial maturity from a formal declaration releasing a ward. Read it as an illustration of a particular institutional dispute, not a claim that every judicial declaration is merely informational.

Example: A condition and its appointed sign

Section 42 separates the acquisition of reason from puberty, the sign appointed because individual development is difficult to determine. Application B07 offers a further comparison involving actual maturity and a formal declaration concerning a ward.

Try it before reading the feedback

1. State the two senses of 'cannot occur' that §50 distinguishes.
2. Why must a comparison with B07 establish what the official declaration does?

Feedback and assessment

1. An act may lack a presently unfulfilled legal condition that can be obtained, or lack a condition making its occurrence possible at all. The objection treats these alike.
2. A declaration might establish a fact, alter a status or perform both functions. One cannot infer its legal role merely from calling it a sign or from observing that maturity exists independently.

Advanced - Research

Open this lesson online

Aim. Clarify what the analogy with perceptible causes does and does not establish about legal explanation.

Ordered readings. §23 · §42 · §49 · §50 · §54 · §55

Section 55 speaks of appointed signs that entail the occurrence of rulings as perceptible causes entail effects. Attend both to the comparison and to the appointment by the Law. The passage concerns how rulings are manifested and known; it explicitly postpones the detailed conditions to Part III.

A rigorous analysis should distinguish the ontological condition of an act, the legal condition of its acceptability, a sign of responsibility, and the means by which an authority recognizes a relevant state. The text supplies examples for these distinctions, but does not present a single exhaustive taxonomy in this paragraph.

Example: Puberty as an appointed indication

Section 42 explains that puberty does not suddenly add reason. It is appointed as a generally indicative sign because the individual emergence of reason is difficult to determine. This controls an overly physical reading of legal causation.

Try it before reading the feedback

1. What inference from the cause analogy would §42 make doubtful?

2. Draft a source-based account of the relation among §§23,49-50 and §55.

Feedback and assessment

1. It would be doubtful to infer that a legal sign must physically produce the capacity or state it indicates. Section 42 expressly distinguishes the sign from the development of reason.

2. Assessment criteria: distinguish obtainable means, conditions of possibility and appointed signs; explain the role of each example; preserve §55’s postponement of further analysis. Mark any claim about a comprehensive theory of causation as an interpretation requiring additional textual support.

8. Must an act be repeated?

Separate validity, sufficient performance, repetition after a defect and a later duty to make up an observance.

Before you begin

Distinguish the original command from the conditions under which the act fulfils it.

Key terms in this lesson

ṣiḥḥa - Validity; §56 records different technical usages in worship and then treats contracts separately.

ijzā' - Sufficiency: performance that discharges the relevant duty when its prescribed character and conditions are fulfilled.

adā' - Timely performance of an obligation within its appointed period.

i'āda - Repetition after an initial performance affected by a defect.

qaḍā' - Make-up performance; §57 distinguishes several uses and warns against drawing the same inference from all of them.

Linked Bidāya applications

B08. A remoter guardian: invalidity, permission, or ratification
Illustrative parallel. Marriage; ch. 2; conditions of contract; guardians, third topic, issue 1: a remoter guardian contracts while the nearer is present.

B17. Completing 'umra does not by itself prove an initial duty to begin it
Illustrative parallel. Pilgrimage; first kind of inquiry: the legal status of 'umra.

Basic - Foundations

Open this lesson online

Aim. Classify timely performance, repetition and make-up performance without inferring blame from the label alone.

Ordered readings. §51 · §56 · §57 · §205

Section 57 distinguishes performing within the allotted time, performing again after a defect, and performing after the time has elapsed. It also says that make-up terminology has several uses. A missed act caused by inadvertence differs in culpability from one deliberately omitted, even where the later performance receives the same name.

Section 56 records different meanings of validity in worship. Section 205 gives the crucial qualification for sufficient performance: the act must be complete, possess its prescribed character and meet all its conditions. Section 51 explains that a later duty to make up an act requires its own legal warrant.

Example: Making up a fast after menstruation

Section 57 rejects the inference that a later obligation to make up fasting proves an earlier obligation to fast during menstruation. A later duty and an earlier duty are different claims.

Try it before reading the feedback

1. Does every duty to make up an act prove blame for not performing it earlier?

2. Why does merely doing something commanded fail to establish sufficiency in §205?

Feedback and assessment

1. No. The menstruation example and the distinction involving inadvertence show why the original duty, the later duty and blame must each be established.

2. The prescribed character and conditions matter. A command to complete an already defective pilgrimage does not make that defective performance sufficient to discharge every duty connected with it.

Intermediate - Close reading

Open this lesson online

Aim. Explain the difference between a disagreement over validity terminology and a substantive claim about a renewed command.

Ordered readings. §51 · §56 · §57 · §204 · §205

Section 56 contrasts theologians' usage of validity as conformity with the Law with jurists' usage emphasizing sufficiency and removal of make-up liability. Its example of a person who believed himself ritually pure shows why the same word can answer different questions. Identify the convention before declaring a doctrinal contradiction.

Section 204 then examines the scope of a timed command. For the account Ibn Rushd presents as carefully distinguishing the issues, specifying time can be a condition of the commanded act, so an obligation after that time needs further evidence. Section 205 concerns a separate question: whether complete compliance suffices.

Example: An invalidated pilgrimage must still be completed

Section 205 uses the command to complete an invalidated pilgrimage as an objection to automatic sufficiency. Ibn Rushd answers by qualifying complete compliance: a defect can prevent the performance from satisfying the original duty.

Try it before reading the feedback

1. Separate the question asked in §204 from the question asked in §205.

2. Why is 'the act was valid, therefore no later duty can arise' not safe without further clarification?

Feedback and assessment

1. Section 204 asks whether a timed command itself requires later make-up performance. Section 205 asks when performing a commanded act sufficiently discharges a duty.

2. One must identify the usage of 'valid' and whether a further command applies. Section 56 explicitly reports a usage compatible with make-up performance being required by renewed command.

Advanced - Research

Open this lesson online

Aim. Evaluate inferences from performance and later liability while keeping the scope of each command explicit.

Ordered readings. §49 · §51 · §56 · §57 · §59 · §204 · §205

Map each example by original addressee, act, time, conditions and further legal address. This exposes several invalid shortcuts: later make-up does not prove an earlier duty; a command to complete an undertaking does not prove an initial duty to begin it; and a technically valid performance need not settle every later obligation.

Section 59 supplies another control. A person's expectation of death does not itself cause the allotted period to expire. Probable judgement can affect the assessment of postponement without changing the objective time condition. Application B17 offers a related, explicitly illustrative distinction between beginning and completing 'umra.

Example: Expected death and an unexpired period

Section 59 rejects calling later performance ‘make-up’ merely because someone had expected to die earlier. When the expectation proves false, the prescribed time has not thereby elapsed.

Try it before reading the feedback

1. Why does §59 matter for distinguishing culpability from the classification of performance?

2. What evidence is needed to extend §204’s argument to a particular missed observance?

Feedback and assessment

1. The expectation may affect whether delay was defensible, but the category of timely or late performance depends on the actual prescribed period. The two assessments have different grounds.

2. Research criteria: establish the original command’s scope, the role of its time condition and any further evidence requiring make-up. Do not infer the final fiqh ruling solely from a general claim about what imperative wording entails.

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9. What is a concession?

Understand permitted latitude under an excuse while preserving the original requirement and the evidence governing the exception.

Before you begin

Know the difference between an original duty, permission, and make-up performance from lessons 2 and 8.

Key terms in this lesson

‘**azm** - The wording used in §60 for the original requirement imposed by the Law; the lesson follows that passage’s terminology.

rukhṣa - A concession: latitude granted because of an excuse or incapacity, with the original prohibiting cause remaining in the account given in §60.

‘**udhr** - An excuse relevant to the legal latitude under discussion; its effect must be established from the Law.

ḥadhf - Omission or ellipsis; §58 discusses an understood condition omitted from the surface wording of the fasting verse.

Linked Bidāya applications

B09. A traveller who fasts: an implied condition in the verse
Illustrative parallel. Fasting; ch. on those permitted to break the fast; the traveller’s performance of the fast.

Basic - Foundations

Open this lesson online

Aim. Explain how a concession differs from treating the original requirement as simply absent in every circumstance.

Ordered readings. §57 · §58 · §60

Section 60 describes an original requirement and then a concession: latitude granted because of an excuse or incapacity while the prohibiting cause remains. Its example of otherwise forbidden food under necessity shows why an exceptional permission does not erase the general rule.

Sections 57-58 apply the problem to fasting during travel or illness. Ibn Rushd distinguishes interpretations of the relation between fasting now and fasting on other days. The classification depends on how the relevant address is understood. Calling something a concession therefore names a legal relationship that must be explained, rather than providing an answer by itself.

Example: The traveller who fasts

Section 58 contrasts readings of the requirement to fast on other days. On the concession reading, the understood condition is that the traveller breaks the fast; travel alone does not by itself invalidate a fast performed during travel.

Try it before reading the feedback

1. Why does §60's exceptional permission not amount to unrestricted permission?
2. What omitted condition matters in §58's account of the fasting verse?

Feedback and assessment

1. The permission is connected to the excuse or necessity described. Its scope cannot be expanded merely by ignoring that condition or the continuing general prohibition.
2. The understood condition is that the person breaks the fast. The requirement of other days is then read in relation to that omitted condition, rather than attached to travel without qualification.

Intermediate - Close reading

Open this lesson online

Aim. Distinguish the competing analyses of a traveller's fast and connect the disagreement to interpretation.

Ordered readings. §57 · §58 · §60 · §155 · §193 · §194

Section 58 reports two alternatives to the concession analysis: the Ẓāhirī view that the fast performed then is invalid, and al-Karkhī's view that the obligation concerns other days although earlier fasting is valid. These positions must remain separate. They agree in declining the particular ellipsis identified by Ibn Rushd, but do not draw the same conclusion about validity.

Sections 155 and 193-194 explain why understood import and omitted wording can carry different degrees of evidential force. The fasting dispute therefore connects Part I's classification of the act with Part III's methods of interpretation. The mere presence of an ellipsis does not show that every proposed supplement is justified.

Example: One rejected supplement, two conclusions

In §58 al-Karkhī compares fasting in Ramaḍān with advancing alms before the year's completion. The Ẓāhirī conclusion reported there instead denies validity. Their different results cannot be represented by a single 'literal' ruling.

Try it before reading the feedback

1. What distinguishes al-Karkhī's reported account from the Ẓāhirī account?
2. What must justify supplying an omitted condition in this reading?

Feedback and assessment

1. Both locate the obligation on other days, but al-Karkhī allows the earlier fast to count, whereas the reported Ẓāhirī view denies its validity.

2. Contextual and legal evidence must support the understood meaning. The later language discussion supplies a method for assessing its strength; editorial insertion alone cannot establish the interpretation.

Advanced - Research

Open this lesson online

Aim. Evaluate how the classification of a concession depends on interpretation, timing and the conditions of a particular case.

Ordered readings. §18 · §57 · §58 · §60 · §193 · §194

Section 57 compares the traveller's and sick person's duty with an extended-time obligation and questions the strict application of make-up terminology. Section 58 then reports competing interpretations, while §60 gives a central sense of concession and acknowledges other uses of the term. A rigorous account should test the fit between these examples rather than assume one definition resolves every case.

The final paragraph of §58 raises the case of illness involving feared death or severe harm and explicitly leaves its assessment to independent inquiry. Preserve that limitation. The passage does not authorize transferring an uncomplicated travel example to every medically serious circumstance.

Example: The limit of a general classification

After explaining the concession reading, §58 raises a more difficult illness case. Its purpose is to mark a question still requiring judgement; it does not supply a completed ruling for every degree of illness.

Try it before reading the feedback

1. How can the extended-time comparison illuminate the ordinary case without deciding every illness case?

2. Design a check of the omission argument using the Bidāya discussion located in B09.

Feedback and assessment

1. The comparison explains alternative performance periods under the assumed conditions. Additional harm can change which conditions and evidence are relevant, so the analogy cannot be applied without further analysis.

2. Research criteria: compare the exact verse interpretation, reports used, distinct positions and scope of the cases. Record whether the applied discussion confirms, qualifies or complicates the theoretical formulation; do not claim a completed cross-text demonstration from the summary card alone.

Unit 3. Transmission and reports

10. How are the Qurʾān and Sunna known?

Distinguish the authority of revelation, the strength of its transmission, and the warrant for acting on probable evidence.

Before you begin

Distinguish a source of a ruling from the ruling derived from it.

Recognize certainty, preponderant judgement, and unresolved doubt as different states.

Key terms in this lesson

tawātur - Recurrent transmission producing certainty under the relevant conditions; §75 rejects a fixed number that would produce it in every case.

khabar al-āḥād - A report below the recurrent-transmission threshold discussed here; its practical authority requires an account distinct from certainty.

taṣdīq - Assent: accepting something as true, with the rank of that acceptance examined in §§74-79.

ghalabat al-ẓann - Preponderant judgement: an evidentially stronger judgement whose legal role is explained in §81.

qarīna - An accompanying indication that strengthens, weakens, or helps determine what a report warrants.

Linked Bidāya applications

B10. The basmala: Qurʾānic wording and membership in a sūra
Illustrative parallel. Prayer; third division, verbal constituents, issue 4: reciting the basmala.

Basic - Foundations

Open this lesson online

Aim. Explain why acting on a report and being certain of its transmission are different questions.

Ordered readings. §64 · §66 · §74 · §75 · §81

Begin with §66. Ibn Rushd distinguishes hearing the Prophet directly from receiving his words through transmitters. The authority of the original speaker does not remove the need to examine how a later hearer receives the report. §64 separately discusses establishing what belongs to the Qurʾānic corpus.

In §§74-75 the question is the strength of assent: when does transmission produce certainty? Multiplicity matters, but Ibn Rushd rejects a fixed number that works independently of the surrounding indications. Counting narrators is therefore not a complete account.

§81 supplies the practical bridge. Preponderant judgement can be appointed as a sign that a ruling applies. Ibn Rushd connects this with witnesses, legal opinions, and finding the qibla when it is unseen. A requirement to act does not turn each individual report into certain knowledge.

Example: Finding an unseen direction

§81 invokes facing the Kaʿba when it cannot be seen. The person must use warranted evidence to act; lack of direct sight does not make every direction equally acceptable.

Try it before reading the feedback

1. Name the three questions separated by this lesson: original authority, transmission, and practical action.

2. Why would requiring recurrent transmission for every report cause the difficulty described in §81?

Feedback and assessment

1. The speaker's authority concerns why the original statement binds; transmission concerns our evidence that the statement was made; practical action concerns what strength of evidence suffices to act.
2. Ibn Rushd argues that most particular reports need not be recurrently transmitted. Requiring recurrence in every case would suspend many rulings and obstruct securing rights. This supports a warranted role for probability, not indiscriminate acceptance of reports.

Intermediate - Close reading

Open this lesson online

Aim. Reconstruct the argument from degrees of transmission to warranted action without confusing its separate premises.

Ordered readings. §75 · §76 · §77 · §79 · §81 · §82

Read §§75-79 as an account of how assent arises, then §81 as an argument about action. §77 allows contextual indications to strengthen or weaken a report. §79 also acknowledges the unusual possibility that a single report produces certainty for a particular recipient in particular circumstances; its defective textual construction is marked in the reader.

In §81 distinguish a position Ibn Rushd reports, al-Ghazālī's objection, and Ibn Rushd's reply. The reply contrasts rare ignorance of the Law altogether with the ordinary absence of recurrent transmission for particular reports. §82 then separates the existence of a duty to warn from the evidential force of a particular scriptural argument for accepting the warning.

Example: The reported death in the marketplace

In §77, a report that the king was killed publicly is weakened when people returning from the marketplace say nothing about it. The surrounding circumstances matter because the reported event would normally have consequences visible in their behaviour.

Try it before reading the feedback

1. Explain why "one narrator always means the same probability" misrepresents §§77-79.
2. In §82, distinguish the verse's apparent meaning from a claim that it decisively proves the required conclusion.

Feedback and assessment

1. Probability varies with relevant circumstances and the recipient's evidence. This variation does not authorize treating a preferred impression as an indication without an argument.
2. Ibn Rushd finds the verse more apparently supportive of action on reports from a small group, but observes that the word for "group" can also denote a large number. The lexical possibility prevents the argument from being unambiguous even where it remains persuasive.

Advanced - Research

Open this lesson online

Aim. Test the relation between epistemic certainty, legal authority, and evidence of a proposition's precise scope.

Ordered readings. §64 · §75 · §76 · §77 · §81 · §82

Treat three claims separately: a report produces certainty; a practice of acting on reports is certainly established; and a particular reported ruling must be acted on. §81's concluding appeal to the Prophet's emissaries concerns the warrant for the practice. It does not certify every report subsequently offered.

The basmala discussion in §64 and application B10 add a further distinction: recognizing transmitted wording as Qurʾānic and assigning it to the beginning of every sūra are different propositions. Use the application as an explicitly labelled illustrative parallel, then examine its linked source before making stronger claims.

For comparative research, locate al-Ghazālī's own discussion corresponding to §§76-82. This is a proposed investigation: Ibn Rushd's report of his position is evidence about Ibn Rushd's argument, not a substitute for reading the comparator.

Example: An authority claim with the wrong scope

A researcher writes: "Certainty establishes the authority of solitary reports; therefore each solitary report is certain." Identify the shift from a rule governing practice to the truth of each item admitted under conditions.

Try it before reading the feedback

1. Write a 300-word reconstruction with separate propositions for transmission, authority, and action.
2. Check one passage in the proposed al-Ghazālī comparison or B10's source and record the exact edition locator.

Feedback and assessment

1. A strong reconstruction states which proposition is certain, which remains probable, and what conditions connect evidence to action. It answers the apparent tension rather than replacing "probable" with "certain."
2. Assess the comparison by accurate attribution, a bounded quotation or translation, an exact source locator, and a stated limit: agreement on one proposition does not establish agreement on all three.

11. How should narrators be judged?

Examine truthfulness, retention, stated grounds of evaluation, and the difference between categorical denial and forgetfulness.

Before you begin

Complete the transmission lesson's distinction between certainty and warranted action.

Key terms in this lesson

ʿadāla - Probity: the qualification whose meaning is disputed in §§86-90 and whose purpose Ibn Rushd relates to probable truthfulness.

ḍabṭ - Accurate retention; §85 distinguishes the danger of habitual inattention from the evaluation of moral reliability.

jarḥ - Criticism of a transmitter, whose grounds and evidential force are examined in §96.

taʿdīl - Attestation of probity; its meaning and grounds must be distinguished from merely acting on a report.

Basic - Foundations

Open this lesson online

Aim. Separate the narrator's memory, truthfulness, and relation to a particular report.

Ordered readings. §83 · §85 · §86 · §90 · §96 · §107

§83 refuses to import the numerical requirements of testimony automatically into report transmission. Once action on a single report is established, someone demanding additional narrators must justify that extra requirement.

Accuracy and truthfulness are separate concerns. §85 discusses retention; §§86-90 discuss probity and the disagreement about what establishes it. Ibn Rushd's conclusion in §90 relates probity to a preponderant judgement of truthfulness under the circumstances, rather than an arbitrary fixed threshold.

§96 asks what an evaluator knows and whether the grounds are stated. §107 then distinguishes a teacher's categorical denial from simple failure to remember. Neither "a teacher denied it" nor "the narrator is reliable" is enough by itself to summarize every case.

Example: "That is false" and "I do not remember"

In §107, categorical denial by a teacher produces a conflict between two persons of probity. Uncertain recollection is different: the teacher may simply have forgotten what the transmitter remembers with certainty.

Try it before reading the feedback

1. Why is failing to act on one disputed report not necessarily a judgement that its narrator is dishonest?
2. State one difference between retention and probity.

Feedback and assessment

1. The problem may be conflict between reliable sources or another defect in the evidence. §107 explicitly withholds action after categorical denial without thereby discrediting the transmitter.

2. Retention concerns preserving what was heard accurately. Probity concerns the grounds for confidence in truthfulness. A person may be sincere yet inattentive, so one qualification cannot replace the other.

Intermediate - Close reading

Open this lesson online

Aim. Explain whose certainty or probability matters at each stage of transmission.

Ordered readings. §90 · §96 · §97 · §106 · §107

§106 rejects an equivocation about probability. The recipient may have probable confidence in a teacher's truthfulness, while the transmitter must be certain of hearing where certainty is possible. The fact that a later judgement is probable does not lower every earlier requirement to probability.

§96 likewise qualifies the preference for criticism over praise. Criticism ordinarily adds information, but if the favourable evaluator directly addresses the very matter alleged by the critic, the two evaluations conflict. Read §97 to see why action on a report does not always accredit its transmitter: the action could rest on another proof.

Example: Two evaluators, one alleged event

One evaluator reports a specific fault; another merely gives general praise. Compare this with a second case in which the favourable evaluator directly rebuts that same allegation. These are teaching variations on §96's stated distinction.

Try it before reading the feedback

1. Draw a three-step chain: the speaker's utterance, the transmitter's hearing, and the recipient's judgement. Label the relevant assurance at each step.
2. Explain why "criticism always wins" and "acting on a report always accredits its narrator" both require correction.

Feedback and assessment

1. A satisfactory chain distinguishes the source event from certainty about having heard it and from probable confidence in the person now transmitting it. It does not assign one undifferentiated probability to the entire process.
2. Criticism's added information can itself be contested, producing conflict. Acting on a report may rely on independent evidence. The conclusion depends on what the evaluator or actor actually knows and relies upon.

Advanced - Research

Open this lesson online

Aim. Evaluate a rule of transmitter assessment by its stated grounds and exceptions.

Ordered readings. §83 · §90 · §95 · §96 · §97 · §106 · §107 · §233

Build an argument table rather than a checklist of reputations. For each judgement record its object, evaluator, grounds, and the competing information. Distinguish rejecting a report, discrediting a person, and withholding a conclusion. §§96-107 supply cases where those outcomes come apart.

Compare this with §233 on a jurist relying on another scholar's accreditation: the jurist should know the accreditor's approach and its agreement with his own. The methodological

issue is how second-hand expertise is responsibly used, not whether every jurist must independently repeat every biographical inquiry.

A possible external comparison is al-Ghazālī's treatment of criticism and accreditation. Locate and read that text before asserting dependence, agreement, or correction; the current exercise establishes no such conclusion in advance.

Example: A compact research dossier

Take the teacher's denial in §107. Set out categorical contradiction, uncertain recollection, the transmitter's certainty, and the recipient's probable judgement in separate rows. Explain why the legal handling changes when only one feature changes.

Try it before reading the feedback

1. Write a 250-400 word critique of an unqualified rule that adverse criticism always defeats favourable accreditation.
2. Add one verified comparison with §233 or the proposed external source.

Feedback and assessment

1. Assess the critique by its treatment of §96's exception, the reasons for preference, and the distinction between uncertainty about a report and an accusation against its narrator.
2. A good comparison identifies what is delegated to expertise, what the recipient must still understand, and where the two passages address different questions. External claims require the actual passage and edition locator.

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12. Can wording be changed in transmission?

Distinguish an added phrase, a translation, an excerpt, and an omitted transmitter; each changes the evidence differently.

Before you begin

Distinguish a report from an interpretation of that report.

Understand why an accompanying indication can strengthen or weaken a report.

Key terms in this lesson

ziyāda - Additional wording transmitted by one narrator; §108 weighs its circumstances rather than issuing a uniform verdict.

riwāya bi-l-maʿnā - Transmission by meaning rather than original wording; §§109-110 distinguish linguistic equivalence from another person's interpretation.

ibdāl - Substitution of an expression; in this lesson the question is whether the replacement preserves what the recipient needs to judge.

irsāl - Transmission with an omitted link, discussed in §111.

taqlīd - Following another person's judgement; §110 explains when a reported meaning would make an independent jurist depend on someone else's interpretation.

Basic - Foundations

Open this lesson online

Aim. Identify what has changed in a report before deciding whether the change matters.

Ordered readings. §108 · §109 · §110 · §111

Four different problems occur here. §108 concerns extra wording found in one transmission. §109 concerns replacing words while conveying meaning. §110 concerns both the independent jurist's need for the original expression and the conditions of excerpting. §111 concerns a missing link in the chain.

Ibn Rushd rejects the simple argument that a reliable narrator's addition must be accepted just as an entire report from him would be. Other accurate narrators' omission is relevant evidence, but they may not have heard that part. §108 therefore leaves the judgement sensitive to the case.

For translation, §110 distinguishes explaining a meaning to someone relying on a jurist from supplying an independent jurist with another interpreter's conclusion. Where understanding the wording is disputed, the independent inquiry needs access to that wording.

Example: Replacing two words for sitting

§109 uses quʿūd and julūs as an example of a replacement some permit where equivalence is beyond doubt. The difficult case is a replacement whose alleged equivalence already depends on an interpretation.

Try it before reading the feedback

1. Why is an addition to a jointly transmitted report different from a wholly separate report?

2. What must remain true of an excerpt under §110?

Feedback and assessment

1. The other narrators' version now supplies comparison evidence. Their omission may weaken the addition, although it does not by itself prove they denied or heard it.

2. The excerpt must convey an independent intelligible meaning, and omitted material must not introduce an ambiguity or remove what is needed to understand it. Brevity alone does not establish that condition.

Intermediate - Close reading

Open this lesson online

Aim. Separate preservation of meaning from transfer of interpretive responsibility.

Ordered readings. §108 · §109 · §110 · §111

Reconstruct the two positions reported in §109 before identifying Ibn Rushd's own judgement in §110. One allows a knowledgeable person to transmit meaning; another demands a replacement whose equivalence is beyond doubt. The appeal to translation does not by itself settle whose interpretive judgement a later recipient is accepting.

In §110 the intended recipient matters. A jurist may explain or translate for followers while an independent jurist may require the Lawgiver's wording to perform his own inquiry. §111 makes a parallel evidential point about chains: the formula "from" is not by itself proof that there was direct hearing.

Example: An interpretation hidden inside a translation

Imagine a translator rendering an expression capable of two relevant senses by only one of them. This teaching example illustrates §110: the reader may unknowingly receive a juristic choice as though it were simply the transmitted wording.

Try it before reading the feedback

1. Explain how a translation can be useful and still insufficient for a particular independent inquiry.
2. List the extra evidence §111 asks for before treating a “from” chain as connected.

Feedback and assessment

1. The explanation may faithfully convey the translator’s judgement for its audience. If the disputed legal conclusion depends on choosing among senses, however, another jurist needs the underlying wording and its alternatives.
2. An explicit statement of direct hearing or accompanying indications may establish connection. Without either, the formula alone leaves uncertainty between a connected report and one with an omitted link; no universal judgement about every such chain follows.

Advanced - Research

Open this lesson online

Aim. Design a transparent editorial treatment of reported words, interpretation, and missing evidence.

Ordered readings. §108 · §109 · §110 · §111 · §158 · §167

Apply §§109-110 to the scholarly reader itself. A translation is an interpretation whose decisions should be inspectable. Choose a disputed expression in §158 or §167, retain its Arabic, and distinguish a literal lexical possibility from the contextual or legal reason for selecting it.

Then construct two abstracts of the chosen passage: one preserving the argument and one deliberately omitting a necessary qualification. Label the second as an editorial counterexample. Use §110’s conditions to explain precisely why that omission changes what the reader can infer.

For a source comparison, locate al-Ghazālī’s discussion corresponding to transmission by meaning. Compare his proposed audience and the required linguistic competence with Ibn Rushd’s distinctions. This remains a proposed comparison until the source passage is checked.

Example: A translation note with an accountable choice

A useful note states the Arabic expression, the plausible senses, the contextual reason for the preferred rendering, and the legal difference that another rendering would make. It does not use a dictionary gloss as a substitute for the whole argument.

Try it before reading the feedback

1. Prepare a 300-word translation-and-excerpt dossier with one documented interpretive choice.
2. Explain whether your excerpt preserves the issue, the attributed positions, and Ibn Rushd’s qualification.

Feedback and assessment

1. Assess the dossier by accurate quotation, explicit separation of wording from explanation, and preservation of a material alternative. More literal wording is not automatically more informative if it conceals the ambiguity.

2. The strongest answer identifies a specific inference that becomes possible or impossible after omission. It also records uncertainty instead of silently repairing a disputed expression or missing link.

Unit 4. Abrogation, consensus and presumption

13. When is a ruling abrogated?

Distinguish removing an earlier ruling from explaining its scope, and ask what evidence establishes the change.

Before you begin

Distinguish the wording of a source from the ruling established through it.

Understand that evidence differs in certainty and transmission.

Key terms in this lesson

naskh - Abrogation: the later removal of a revealed ruling, with competing definitions discussed in §115.

nāsikh - The abrogating discourse; its relationship to the earlier ruling and its later date must be established.

mansūkh - The ruling or text said to be abrogated; specify exactly what is alleged to cease.

takhṣīṣ - Specification of a general expression's scope; §126 distinguishes clarification from removal.

tawātur - Recurrent transmission, relevant here to the evidential standard for claims about the Qurʾān and other certain texts.

Basic - Foundations

Open this lesson online

Aim. Explain why apparent conflict alone does not establish abrogation.

Ordered readings. §115 · §116 · §122 · §126 · §128 · §129

§115 records different definitions: removal of an earlier ruling, or disclosure of its intended time limit. In §116 Ibn Rushd distinguishes the theological dispute about possibility from what a jurist needs to establish in a particular legal inquiry.

For a first reading ask three questions. What earlier revealed ruling is claimed to cease? What later discourse removes it? What evidence establishes that temporal relationship? §128 excludes treating the mere end of an already stated period, or the original absence of obligation, as the same phenomenon.

§126 separates specification, which clarifies scope, from abrogation, which removes a ruling. §122 says consensus cannot itself abrogate after revelation has ceased; it can provide evidence that an earlier abrogating text existed.

Example: Knowing the date of the report

§129 accepts explicit wording identifying an earlier prohibition and a later permission, known dates, or the stated evidential role of consensus. A transmitter's later conversion to Islam does not by itself date the event he reports.

Try it before reading the feedback

1. Why does a younger transmitter not prove a later ruling?

2. How can consensus be evidence of abrogation without being its cause?

Feedback and assessment

1. The transmitter's biography and the date of the reported ruling are different facts. A later convert may report earlier material; the required chronology needs evidence.

2. On §122's account, consensus can disclose an earlier abrogating revelation that has not reached us. It does not enact a new abrogation after revelation has ended.

Intermediate - Close reading

Open this lesson online

Aim. Determine what changes when an addition, omission, or later text alters an obligation.

Ordered readings. §115 · §117 · §118 · §121 · §123 · §126 · §129

§118 does not treat every addition alike. The question is whether the addition makes the original prescribed act a different individual whole. The example of additional prayer cycles is contrasted with adding a distinct obligation, and with adding a quantity that does not alter the act's identity in the same way.

§121 further separates recitation from ruling and then scrutinizes the proof for particular claimed instances. Notice the move from reporting that a category is accepted to asking whether a given historical claim meets the required evidential standard.

§123 also distinguishes circumstances during the Prophet's lifetime from later transmission. Read its argument about access to the Prophet and accompanying indications before extracting a slogan about one report overriding another.

Example: More prayer cycles and a new obligation

In §118, adding cycles can change which complete prayer is required. Prescribing almsgiving alongside prayer does not replace prayer merely because the total set of duties has increased. The contrast concerns identity, not simple numerical increase.

Try it before reading the feedback

1. Compare §118's three kinds of addition and state the criterion doing the work.

2. Identify one place in §121 where Ibn Rushd asks for stronger proof rather than simply repeating a reported example.

Feedback and assessment

1. The criterion is whether the addition changes the prescribed act into a different individual whole. Distinct duties and some quantitative additions therefore receive different treatment; Ibn Rushd also records disagreement.

2. He questions accepting former Qurʾānic wording on solitary routes. A valid answer separates the general possibility of the category from the transmission required to establish that a particular wording was once Qurʾān.

Advanced - Research

Open this lesson online

Aim. Audit an abrogation claim by distinguishing its semantic, chronological, and transmission premises.

Ordered readings. §116 · §121 · §122 · §123 · §125 · §126 · §127 · §129 · §181 · §182

Construct a dossier for one claim actually discussed in these sections. Record the competing texts, what each establishes, the proposed conflict, the alleged temporal order, and the strength of the evidence for each step. §127 warns that calling something "abrogation" can conceal an interpreter's classification rather than transmit a Prophetic statement.

Compare §126 with §§181-182. The latter discuss whether apparently general and specific evidence must be ordered chronologically or can be read as mutually clarifying. Do not settle

that dispute by assuming that every restriction is removal, or that every later text leaves the earlier ruling untouched.

An external extension could compare al-Ghazālī's treatment of the same example. Verify the source before attributing the shared category or a particular conclusion to both authors.

Example: A claim whose chronology is weaker than its texts

§126 leaves open examination of whether a solitary report can establish which of two decisive texts is later. The certainty of the texts and the certainty of their chronological relationship are distinct evidential questions.

Try it before reading the feedback

1. Write a 350-word assessment of one abrogation claim, with a separate line for each required premise.
2. State what evidence would favour specification rather than abrogation in your chosen comparison.

Feedback and assessment

1. Assess the dossier by exact attribution, preservation of Ibn Rushd's open questions, and separation of proof of wording, proof of meaning, and proof of chronology.
2. A strong answer identifies which proposition is actually disputed. It does not manufacture a date, convert a Companion's interpretive label into a direct report, or treat consensus as a new post-revelatory act of repeal.

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14. What counts as consensus?

Distinguish qualified agreement, majority opinion, silence, and transmitted practice; identify the warrant claimed for each.

Before you begin

Distinguish a source's authority from the evidence that a particular instance exists.

Key terms in this lesson

ijmāʿ - Agreement of the qualified practitioners of independent judgement on a revealed ruling, as defined in §130.

mujtahid - A qualified practitioner of independent juristic inquiry; the relevant participants in §130's definition.

sukūt - Silence; §137 asks what, if anything, the circumstances show about a silent person's judgement.

ʿamal - Practice; §138 examines Medinan practice through the possibility of transmission from the Prophet's time.

Linked Bidāya applications

B21. Deathbed divorce: blocking an evasion without erasing doctrinal difficulty
Express methodological discussion in the Bidāya. Divorce; second division, ch. 2: irrevocable divorce during fatal illness.

Basic - Foundations

Open this lesson online

Aim. Explain why “many agree” and “nobody objected” do not automatically establish consensus.

Ordered readings. §130 · §133 · §134 · §137 · §139

§130 defines consensus by agreement of qualified jurists on a revealed ruling. §133 explains why lay agreement does not add an independent source for a jurist: in the relevant matters it either follows qualified judgement or concerns already recurrently transmitted knowledge.

§134 requires the qualified jurists of one age, rather than every person of every future age. §137 asks whether all or merely most must agree. Ibn Rushd takes the apparent scope of the relevant formulas to include them all, while recognizing the inquiry into these conditions as disputed.

Silence has several possible explanations. A person may have no settled view, face an obstacle to speaking, or consider the matter open to inquiry. §137 allows circumstances to indicate approval; it does not authorize counting every silence as assent.

Example: A jurist who has not spoken

If one jurist remains silent while others announce an opinion, you still need evidence of what the silence means. Fear, uncertainty, or a belief that disagreement is permissible would undermine the inference of agreement.

Try it before reading the feedback

1. What is missing from the claim “the majority accepted it, so consensus exists”?

2. According to §139, must an agreeing generation die before its consensus can bind?

Feedback and assessment

1. The claim has not established agreement of all the relevant qualified jurists. A majority may be important evidence without satisfying the definition being defended.

2. Ibn Rushd rejects requiring the generation’s extinction. Once consensus has genuinely existed, later dissent does not undo it in his account. Establishing that genuine prior agreement remains the crucial evidential task.

Intermediate - Close reading

Open this lesson online

Aim. Reconstruct the distinct arguments for consensus, reported agreement, and Medinan practice.

Ordered readings. §75 · §130 · §131 · §132 · §135 · §136 · §137 · §138

§131 offers a cumulative scriptural warrant: texts that are not individually unambiguous on this point are considered together with reports transmitted in meaning. §132 rejects replacing that warrant with a simple inference from numbers. Agreement on error is not excluded merely by having many people.

§138 similarly refuses to ground Medinan practice’s authority in an early numerical majority. The proposed justification traces practice by transmission to the Prophet’s time and approval. Without that history, local practice might instead reflect a later ruler’s imposition.

§§135-136 show why consensus disputes depend on other principles. Whether later agreement can follow earlier disagreement, and whether consensus can rest on analogy, require analysis of the underlying evidence rather than a bare label.

Example: The measure of the ṣāʿ

§138 recalls the encounter involving Mālik and Abū Yūsuf over the ṣāʿ measure. Ibn Rushd's methodological point is the transmission of practice across generations, not that a city's current agreement establishes authority by itself.

Try it before reading the feedback

1. Compare the reason numbers matter in §75 with the rejected argument from numbers in §132.
2. Give the missing step in "Medinans do this; therefore the Prophet approved it."

Feedback and assessment

1. In §75 multiplicity is one contextual factor affecting assent to a transmitted event. In §132 the authority of juristic consensus is grounded in a revealed warrant, not an assurance that a large group cannot make an intellectual mistake.
2. The practice must be traced through transmission to the relevant Prophetic period and approval. Present agreement cannot supply that historical link merely by being called practice.

Advanced - Research

Open this lesson online

Aim. Test a historical consensus claim against its participants, proposition, and evidence of agreement.

Ordered readings. §130 · §131 · §132 · §135 · §136 · §137 · §138 · §139 · §217

Choose a bounded claim of consensus rather than a whole school's doctrine. Identify the exact proposition, the qualified participants whose agreement is required, the period, and the evidence for their views. Record silence separately from an explicit judgement unless contextual grounds justify combining them.

Application B21, on deathbed divorce, reports an express challenge to a Companion-consensus claim because a dissenter is known. Read the linked Bidāya passage before reconstructing it. Its relation to §217 also raises a separate question about welfare reasoning; do not let that second issue obscure whether consensus has been established.

A further research exercise compares §131's cumulative warrant with §132's rejection of a purely numerical one. Distinguish defending the institution's authority from proving a particular historical instance.

Example: A dissent that changes the classification

If a documented dissent concerns the same proposition, it defeats a claim of unanimity in the relevant group. First check that the supposed dissent is actually about the same ruling, qualifications, and period.

Try it before reading the feedback

1. Prepare a 300-400 word consensus dossier using B21's verified source or one claim examined within the Darūrī.
2. Explain how your evidence treats silence, later agreement, and a purported dissenter.

Feedback and assessment

1. Assess the dossier by precision of the proposition, identified participants, exact source references, and a justified account of what the evidence proves. "No dissent found" must not silently become "all agreed."

2. A strong result can be qualified or negative. It distinguishes an unproved consensus claim from a refutation of consensus as a source, and it does not suppress differences between transmission of practice and agreement in judgement.

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15. What follows when evidence is absent?

Trace the burden of proof when no obligation is established, and when an established ruling's subject changes.

Before you begin

Distinguish an unestablished obligation from an obligation already established by revelation.

Recognize that apparent evidential conflict can depend on what a particular inquirer has received.

Key terms in this lesson

barāʾa aṣliyya - Original freedom from liability: an obligation requiring revelation is presumed absent until evidence establishes it.

istiṣḥāb - Presumption of continuity; §142 distinguishes several applications rather than one unrestricted rule.

dalīl - An indication or proof; this lesson asks what must be established and on whom the evidential burden falls.

taʿāruḍ - Apparent conflict of evidence, relevant to the position reported in §247.

Linked Bidāya applications

B27. Cupping while fasting: three ways of treating conflicting reports
Illustrative parallel. Fasting; ch. on acts from which the fasting person abstains; cupping.

Basic - Foundations

Open this lesson online

Aim. Distinguish the absence of an established duty from continuity of an already established ruling.

Ordered readings. §141 · §142 · §247

§141 gives the example of a supposed sixth obligatory prayer. Where the obligation could be established only through revelation, the person asserting it must supply the relevant evidence. Ibn Rushd resists demanding equal proof for its absence and its existence.

§142 explains that presumption of continuity has several uses. Continuing original freedom from liability is only one. Others concern maintaining a text, its general scope, or an established ruling. These cannot be collapsed into "nothing ever changes."

§247 reports a Ẓāhirī response to apparently balanced evidence: return to original nonliability. The passage distinguishes the Law's evidence from what a particular person has received or successfully understood. A learner's failure to find a proof is therefore not, by itself, a demonstrated absence of relevant evidence.

Example: The asserted sixth prayer

The example in §141 concerns the burden on someone who would add a revealed obligation. It illustrates how a claim is established; it does not turn a person's present ignorance into unrestricted permission.

Try it before reading the feedback

1. Who bears the primary burden when a new revealed obligation is asserted?

2. Why is keeping an existing ruling a different case from presuming that no ruling was established?

Feedback and assessment

1. The person asserting the obligation must produce its warrant. Ibn Rushd says either no proof, or a lighter burden, should be required for the better-known state of absence.
2. An existing ruling already has a warrant. The question then concerns whether changed circumstances remove it. §142 expressly describes this as a reversal of the earlier allocation of the burden.

Intermediate - Close reading

Open this lesson online

Aim. Compare the five applications of continuity and explain why a changed subject produces disagreement.

Ordered readings. §141 · §142 · §239 · §246 · §247

List §142's applications: original nonliability; general wording until specification; a text until abrogation; a ruling when its attaching circumstance recurs; and an established ruling when the subject is thought to have changed. The fifth introduces a dispute that the earlier labels alone cannot resolve.

Ibn Rushd explains how the Ẓāhirī position fits its rejection of juristic analogy: the established ruling continues until evidence removes it. Someone accepting analogy can treat a changed attribute as making the subject a new case requiring inquiry. This is a reconstruction of how positions follow from principles, not a claim that every physical change is legally relevant.

Compare §§246-247 carefully. Failure to establish a preponderance and freedom to choose any result are different responses; the text does not make caution costless either.

Example: One historical subject, a changed legal description

§142 uses the historical case of an enslaved woman who has borne her master a child. The methodological question is whether her changed description leaves the earlier ruling applicable; the example belongs to its historical legal setting.

Try it before reading the feedback

1. Explain why the debate cannot be resolved simply by saying "keep the old rule."
2. What further question must be asked before treating a changed attribute as a new case?

Feedback and assessment

1. The parties disagree about whether the original evidential warrant still covers the subject. Repeating the presumption assumes the very point under dispute.
2. One must establish the attribute's legal relevance and how the relevant principles handle it. The argument concerns scope and warranted inference, not change considered in the abstract.

Advanced - Research

Open this lesson online

Aim. Evaluate presumptions as structured allocations of evidential burden, with attention to the inquirer's position.

Ordered readings. §141 · §142 · §239 · §246 · §247

Construct two diagrams: one beginning with no established obligation, the other with an established ruling whose subject changes. Show what is initially warranted, what new claim is made, and which evidence could defeat the initial position. Keep §142's competing commitments to analogy visible.

Then analyse §247's account of apparently conflicting proofs. It makes the conflict relative to recipients or periods lacking some evidence or distinctions; this is not an assertion that the Law itself contains equally warranted contradictions. Ask whether the practical conclusion follows from absence, inaccessible evidence, or unresolved conflict.

B27 offers an illustrative parallel in the cupping-and-fasting discussion. Use its linked source to examine how return to an original rule differs from reconciliation or preference. Do not attribute a fully developed comparison to Ibn Rushd merely because the editor links the passages.

Example: A comparison with different evidential starting points

"No duty has been proved" and "a proved duty no longer applies" request different conclusions from different starting points. A satisfactory analysis states the change in the evidential burden instead of calling both simply doubt.

Try it before reading the feedback

1. Write a 300-word comparison of the two starting points using §§141-142.
2. Check B27's source or analyse §247's recipient-relative conflict and identify the precise missing evidence.

Feedback and assessment

1. Assess the argument by its preservation of the five uses, accurate attribution of the Ẓāhirī position, and an explicit account of what would change the judgement.
2. An adequate research result distinguishes an illustrative parallel from an express cross-reference and identifies a determinate evidential gap. Personal uncertainty alone is not proof that no stronger judgement is available.

Unit 5. Language and interpretation

16. Where is a word’s meaning found?

Read verbal form, established usage, and accompanying indications together; distinguish ambiguity from generality.

Before you begin

Understand that a transmitted expression and a conclusion drawn from it are different objects of inquiry.

Key terms in this lesson

lafẓ - Expression or wording, whose form and understood import are distinguished in §149.

qarīna - An accompanying indication through which intended meaning can be understood or its evidential strength assessed.

naṣṣ - Unambiguous indication in this classification; §§153-155 distinguish clarity through form from clarity through understood import.

mujmal - Indeterminate indication: relevant meanings remain unresolved without further clarification.

ẓāhir - The apparent, preponderant meaning in the relevant usage and circumstances; it is not always the oldest dictionary sense.

Linked Bidāya applications

B12. Touching women: equivocation, generality and counterevidence
Illustrative parallel. Purification from ritual impurity; Book of Wuḍūʾ, ch. 4, issue on touching women.

B13. Minimum dower: clarification cannot be postponed beyond need
Express methodological discussion in the Bidāya. Marriage; ch. 2; conditions of contract; dower, first topic, issue 2: its amount.

Basic - Foundations

Open this lesson online

Aim. Distinguish an expression’s possible meanings from the meaning warranted in a particular utterance.

Ordered readings. §148 · §149 · §150 · §151 · §153 · §158 · §164

Begin with §§148-151, which explain why this part matters. Understanding prophetic teaching involves wording and indications; wording can signify through its form or through its understood import. The four principal classes are unambiguous, indeterminate, apparent, and interpreted beyond the apparent meaning.

§153 adds established legal usage. If a term has acquired a specialized legal meaning, that can be its apparent meaning within the Law. Looking up an older ordinary sense does not by itself overturn the relevant usage.

§158 illustrates lexical ambiguity with ʿayn, which has several senses, and ambiguity in a statement’s reference. §164 explains transfer by resemblance or another relation. The task is not to collect all dictionary meanings as though all were intended together.

Example: Which sense of ʿayn?

§158 lists a spring of water and the seeing eye among the senses of ʿayn. Knowing this list identifies a problem; the expression’s occurrence in a sentence and its accompanying indications must help determine which sense is intended.

Try it before reading the feedback

1. Why is a dictionary list insufficient to decide the meaning of this occurrence?

2. Can a specialized legal meaning be more apparent here than an ordinary linguistic meaning?

Feedback and assessment

1. The list supplies possible senses, while the interpretive question concerns one use in its setting. Selecting the intended sense requires wording, usage, and relevant indications.

2. Yes. §153 expressly treats the legal sense as apparent in the relevant legal usage. Returning to an ordinary sense can itself need an interpretive justification.

Intermediate - Close reading

Open this lesson online

Aim. Explain how clarity can arise through understood import and why delayed explanation has different cases.

Ordered readings. §153 · §154 · §155 · §158 · §159 · §160 · §161 · §162 · §163 · §164 · §165

§§154-155 extend the fourfold classification beyond verbal form. An altered expression can be unambiguous through its understood import because accompanying indications settle the intended meaning. Conversely, familiar words do not ensure that their composition or references are clear.

§§161-163 distinguish wholly unresolved meaning from partial knowledge awaiting specification. In §163, knowing a universal description can convey something real while leaving a further question. Ibn Rushd therefore rejects unqualified answers that group every case of delayed clarification together.

§165 also announces his technical use of substitution for the relation between universal and particular expressions. Preserve this local definition instead of assuming every occurrence of “transfer” and “substitution” marks exactly the same subdivision.

Example: The cow awaiting further description

In §163 the command to slaughter a cow supplies intelligible information before the particular cow is identified. On Ibn Rushd’s account, the addressees understand that further inquiry remains. This differs from an expression whose competing senses leave them with no resolved meaning.

Try it before reading the feedback

1. Contrast “I know the relevant kind but need a specification” with “I do not know which meaning is intended.”

2. Why can a figurative expression be unambiguous?

Feedback and assessment

1. The first contains genuine partial knowledge; the second leaves the relevant sense unresolved. The distinction supports Ibn Rushd’s differentiated answer about clarification.

2. Clarity can come from decisive accompanying indications rather than the isolated form. Calling an expression figurative identifies how it signifies; it does not by itself classify its certainty.

Advanced - Research

Open this lesson online

Aim. Reconstruct an interpretation through lexical, syntactic, conventional, and contextual evidence.

Ordered readings. §148 · §149 · §153 · §155 · §158 · §161 · §163 · §164 · §165

Select either the ambiguous reference in §158 or the contrast between ordinary and specialized usage in §153. Produce an evidence table: possible senses, grammatical relations, established usage, relevant indications, and the conclusion each supports. Do not let a later dictionary entry substitute for evidence about this occurrence.

Use B12, touching women, to distinguish a choice between meanings from a dispute about the scope of a chosen meaning. Alternatively, verify B13's source for an express argument about clarification at the time of need. The application labels tell you whether the relation is illustrative or an express methodological discussion.

For further comparison, investigate the corresponding classification in al-Mustaṣfā. State the question to be tested before searching: does the same vocabulary divide the same operations? No identity of doctrine follows from matching labels alone.

Example: A two-stage ambiguity

The touching example can raise two questions: whether the expression denotes bodily contact or intercourse, and, if bodily contact is selected, which instances matter. The first concerns meaning; the second concerns scope under that meaning.

Try it before reading the feedback

1. Write a 300-word interpretation showing how at least two kinds of evidence cooperate.
2. Verify one bounded passage in B12 or B13 and state exactly what comparison it supports.

Feedback and assessment

1. Assess the interpretation by its explicit alternatives, grammatical accuracy, attention to usage, and a reasoned conclusion proportional to the evidence. It may properly remain qualified.
2. A good comparison keeps semantic selection distinct from scope and records its source. An illustrative case should not be presented as proof that Ibn Rushd explicitly cross-referred the two works.

17. How strong must an interpretation be?

Relate the departure from an apparent meaning to the strength of the evidence offered for it.

Before you begin

Distinguish apparent meaning from an unresolved or unambiguous indication.

Read the meaning lesson's account of established usage and context.

Key terms in this lesson

taʾwīl - Interpretation away from the apparent meaning on the strength of an indication; §166 requires proportionate evidence.

ẓuhūr - Apparentness: the degree to which an expression favours a particular meaning.

qarīna - An indication supporting, weakening, or determining an interpretation.

takhṣīṣ - Restriction of general scope; §§170-173 illustrate how such interpretations differ in plausibility.

Linked Bidāya applications

B12. Touching women: equivocation, generality and counterevidence
Illustrative parallel. Purification from ritual impurity; Book of Wuḍūʾ, ch. 4, issue on touching women.

B14. The sales-session option: what counts as "separation"?
Illustrative parallel. Sales; part 3, conditions of validity, ch. 1: the contract and the parties' option before separation.

B15. Guardianship: a disputed condition cannot be established by ambiguity alone
Illustrative parallel. Marriage; ch. 2, conditions of validity; guardians, first topic: whether guardianship is a condition.

Basic - Foundations

Open this lesson online

Aim. Explain why merely possible alternative meanings do not all deserve equal weight.

Ordered readings. §166 · §167 · §168 · §171 · §172

§166 begins from acting on apparent meaning unless evidence supports another reading. It gives a proportional requirement: the stronger the apparent meaning, the stronger the evidence needed to depart from it. An imaginable interpretation is therefore not yet a warranted interpretation.

§167 orders examples by their distance from ordinary understanding: clothing interpreted as rain, the balance as justice, and touching as intercourse. The point is their differing linguistic plausibility, not that one instruction automatically settles every legal dispute involving those words.

§168 ties apparentness to usage and allows interpretations to be probable or certain. "Interpreted" does not mean "uncertain" by definition. §§171-172 apply the same attention to strength when a broad expression is restricted to narrower cases.

Example: Clothing and rain

In §167, understanding clothing as rain requires substantial evidence because clothing strongly signifies what covers a person. The fact that rain may contribute indirectly to producing clothing does not by itself show that this is the intended meaning.

Try it before reading the feedback

1. What is missing from the statement "this word could mean something else"?

2. Why should a weaker apparent meaning require less evidence to interpret differently?

Feedback and assessment

1. It lacks a reason to prefer the alternative in this occurrence. Possibility establishes an option; a relevant indication must support the choice.

2. Less weight must be overcome where established usage already makes the alternative plausible. The comparison concerns the relative force of the evidence, not permission to choose whichever reading one likes.

Intermediate - Close reading

Open this lesson online

Aim. Compare restrictions by their evidential fit rather than their convenience for a doctrinal conclusion.

Ordered readings. §166 · §167 · §168 · §170 · §171 · §172 · §173 · §181 · §182

§170 says evidence for interpretation must signify more strongly than the form being interpreted. §§171-173 then compare restrictions of general statements. The ordering demonstrates that different departures from apparent scope carry different burdens; it is not a list of automatically correct conclusions.

In §171 a restriction of the guardian-permission report faces difficulty from the same report's treatment of dower. A further narrowing tries to evade that difficulty, but Ibn Rushd calls the result remote. The entire report must remain available as evidence.

§§181-182 add two dimensions: the strength of wording and the strength of transmission. An explicit specifying expression may still raise a question about whether its transmission is strong enough to qualify a more firmly transmitted source.

Example: A narrowing that creates another problem

The guardian-report interpretation in §171 first restricts the woman described, then narrows again after the dower clause causes difficulty. Each extra adjustment needs warrant; avoiding a contradiction with a preferred view is not sufficient evidence.

Try it before reading the feedback

1. Explain why interpreting the first clause while ignoring the dower clause weakens the proposed reading.

2. Give two distinct strengths a researcher must compare when one report specifies another.

Feedback and assessment

1. The second clause is part of the same evidence and constrains who or what the first can mean. A reading must account for the coherent whole, not merely rescue an isolated phrase.

2. Compare semantic force and transmission force. A narrow or explicit wording does not automatically settle how securely that wording is known or how it relates to the other source.

Advanced - Research

Open this lesson online

Aim. Assess a contested interpretation with an explicit comparison of the evidence on each side.

Ordered readings. §166 · §167 · §168 · §171 · §172 · §181 · §182 · §256

Use B14, the sales-session option, or B15, guardianship, to construct a bounded interpretive dispute. Verify the linked Bidāya passage and list lexical possibilities, relevant reports, practice, and other arguments separately. The supplied application is a starting description, not the full proof.

For each proposed interpretation specify what apparent meaning it displaces and how strongly the alternative is supported. §168 prevents a crude equation of literal with certain and interpreted with doubtful. §§181-182 require attention to both wording and transmission.

An external comparison with al-Ghazālī should investigate the same disputed expression or principle, using an exact passage. Identify differences in premises or evidential ranking before claiming that the authors agree or that one refutes the other.

Example: The meaning of separation in a sale

B14 describes a disagreement about bodily separation and the completion of bargaining. The case also involves transmission, practice, and other legal evidence. A dictionary showing both senses would leave the principal adjudicative task unfinished.

Try it before reading the feedback

1. Write a 350-word assessment of one verified case with a table of evidence for each interpretation.
2. State what additional finding would most strongly change your current assessment.

Feedback and assessment

1. Assess the work by fair reconstruction of both readings, identification of the apparent meaning, and a proportionate reason for preferring or suspending judgement. Preserve any qualification in Ibn Rushd’s own conclusion.
2. A strong answer names a determinate evidential issue, such as the authenticity, scope, or relevance of an opposing indication. It does not make an interpretation compelling merely by calling it purposive, literal, or school-authoritative.

18. General, specific or equivocal?

Distinguish many instances of one meaning from several different meanings, and trace when context narrows or widens scope.

Before you begin

Distinguish a possible sense from the intended meaning of an occurrence.

Understand the apparent meaning and the need for evidence to depart from it.

Key terms in this lesson

ʿāmm - General: an expression understood to encompass instances under its meaning, subject to warranted specification.

khāṣṣ - Specific: relative to a broader class; §191 explains that the same expression can be specific in one relation and general in another.

mushtarak - Equivocal: one expression has distinct meanings; §177 rejects treating their collection as ordinary general scope.

kullī / juzʾī - Universal and particular; here they help describe relations of scope and the substitution of one expression for another.

ibdāl - Substitution, including a particular expression standing for an intended universal when indications warrant that reading.

Linked Bidāya applications

B12. Touching women: equivocation, generality and counterevidence
Illustrative parallel. Purification from ritual impurity; Book of Wuḍūʾ, ch. 4, issue on touching women.

B22. Ribā in foodstuffs: competing identifications of the operative feature
Close parallel, with differences of assessment. Sales; part 2, causes of invalidity; ribā in the named foodstuffs and their analogues.

Basic - Foundations

Open this lesson online

Aim. Distinguish selecting a meaning from including the instances that fall under it.

Ordered readings. §169 · §174 · §176 · §177 · §191

§169 defends general meaning as a real feature of language. A general expression includes instances under one relevant meaning. By contrast, an equivocal expression has several different senses. §177 rejects treating all those senses as automatically included whenever the word occurs.

§174 shows that context can restrict apparently general wording. §176 shows the converse caution: a statement answering a particular question can still be general in its wording. The occasion alone does not confine its scope.

§191 makes generality and specificity relative. A term can be narrower than one class while broader than another. It also introduces the possibility that particular wording conveys a wider intended meaning when accompanying indications warrant it.

Example: A question about one well

In §176 the answer about water, given in response to a question concerning the well of Buḍāʿa, is framed generally. Ibn Rushd does not restrict it to that well simply because the question began with a particular place.

Try it before reading the feedback

1. Why is including every kind of water unlike including every sense of ʿayn?

2. Can a general answer arise from a particular occasion?

Feedback and assessment

1. The water cases fall under one meaning. The senses of ʿayn, such as spring and eye, are distinct meanings requiring interpretation; listing them does not make the occurrence general over them all.

2. Yes. §176 distinguishes the occasion from the scope of the answer. The wording and other relevant evidence must establish any restriction; the particular occasion alone does not do so.

Intermediate - Close reading

Open this lesson online

Aim. Trace the direction and warrant of a change between general and specific scope.

Ordered readings. §165 · §169 · §170 · §174 · §177 · §180 · §191

Distinguish two directions: apparently general wording with a specific intention, and particular wording standing for an intended universal. §174 illustrates the first; §191 illustrates the second. In both, the departure from apparent scope needs an indication.

§191 further distinguishes knowing that the intended meaning is wider from knowing which wider meaning is intended. In the named-foodstuffs example, nourishment, edibility, and measure are competing candidates. Recognizing possible generalization does not settle the legally relevant universal.

§180 makes a similar methodological point about plural expressions: an attested extended use does not erase the distinction between ordinary signification and a use supported by an indication. Do not infer that every sense a form can bear is equally apparent.

Example: A general complaint about children

§174 describes a person disciplining a child and making a general complaint about children. The circumstances may show that the intention is specific. The illustration concerns contextual scope; it does not make every general expression merely a reference to its occasion.

Try it before reading the feedback

1. Compare the direction of substitution in §174 with that in §191.

2. What remains unresolved when a reader knows that wheat represents something wider but cannot choose among nourishment, food, and measure?

Feedback and assessment

1. In §174 general wording can intend something specific. In §191 a specific expression can stand for something more general. An accurate answer tracks the intended meaning separately from the form used.

2. The candidate universal remains unresolved. The reader needs evidence identifying the relevant ground, rather than confidence that some wider ground probably exists.

Advanced - Research

Open this lesson online

Aim. Test whether a legal disagreement concerns meaning, scope, or the warrant for extending a particular expression.

Ordered readings. §158 · §165 · §169 · §174 · §177 · §180 · §191 · §212 · §218

Compare B12, touching women, with B22, ribā in foodstuffs. Verify the bounded source passages. For each disagreement identify whether participants select different meanings, disagree about instances under a selected meaning, or reconstruct different universals from particular wording.

§177 places the burden on someone claiming a specialized legal convention that would encompass distinct senses together. Such a claim needs evidence of that convention; it cannot be established by the bare existence of several dictionary meanings.

Use §§191 and 212 as preparation for the qiyās lessons. Recovering a wider indicated meaning and comparing two cases without that semantic warrant are not interchangeable operations. In §218 the rival proposed grounds remain sensitive to evidential strength.

Example: Two kinds of disagreement behind similar labels

B12 can involve bodily contact versus intercourse, followed by disputes about which contact matters. B22 involves rival accounts of what the named foodstuffs signify for the ruling. A single label, “generality,” would obscure these different questions.

Try it before reading the feedback

1. Write a 300-400 word comparison classifying each disputed step and quoting or translating its supporting passage.
2. Identify what evidence would be needed to justify a special inclusive legal usage in one disputed case.

Feedback and assessment

1. Assess the comparison by correct direction of substitution, separation of meaning from scope, and a precise statement of the warrant for each extension. Do not import a general verdict on qiyās before examining the operation.
2. A strong answer distinguishes an observed usage from a merely possible one and gives an exact source locator. It preserves the application records’ stated limits instead of treating editorial parallels as authorial cross-references.

19. What do exceptions and qualifications change?

Work out what a qualification modifies, and what evidence permits it to reach beyond its immediate wording.

Before you begin

Distinguish an expression's grammatical form from its understood meaning.

Know the difference between a general expression and a specific instance.

Key terms in this lesson

istithnā' - An exception attached to the expression from which something is excepted; §183 distinguishes this attachment from specification more generally.

muttaṣil / munqaṭi' - Connected and disconnected exception: the latter appears to except something outside the genus named in the preceding wording.

muṭlaq / muqayyad - Unqualified and qualified wording; whether a qualification transfers between contexts requires attention to their relation.

qarīna - A contextual indication that helps establish the scope or intended meaning of an expression.

Basic - Foundations

Open this lesson online

Aim. Explain why the scope of an exception must be established from the statement and its context.

Ordered readings. §183 · §184 · §186 · §187

An exception removes something from what a statement includes. In §183 Ibn Rushd treats its attachment to the statement as essential. Section 184 then separates two questions: whether the excepted item belongs to the named genus, and whether an exception follows one sentence or several.

The first question cannot always be settled by the named genus alone. In §186 the surrounding communication can show that a narrower expression conveys a wider meaning. In §187 a later exception can concern several coordinated clauses, but its reach depends on whether they combine in one meaning. When that is unclear, further evidence is needed.

Example: 'No man … except a woman' (§186)

Ibn Rushd explains this expression through an understood denial that anyone is present. The exception concerns that wider understood meaning. He does not classify a woman as a man.

Try it before reading the feedback

1. Identify the named genus and the wider understood meaning in §186.

2. Explain why 'an exception always applies only to the nearest clause' is too simple for §187.

Feedback and assessment

1. The named genus is men; the wider meaning can include people generally. Context must warrant that extension.

2. Section 187 distinguishes clauses sharing one meaning from clauses conveying several meanings. In the latter case, evidence must identify the exception's reach; position alone does not settle it.

Intermediate - Close reading

Open this lesson online

Aim. Compare the evidence needed for a disconnected exception and for transferring a qualification between statements.

Ordered readings. §185 · §186 · §187 · §189

Section 185 presents two inadequate stopping points: rejecting disconnected exceptions because they seem incoherent, and proving that they occur without explaining how they make sense. Ibn Rushd's answer in §186 reconstructs the communicative meaning that makes the exception intelligible.

Section 189 asks a related but different question: when should an unqualified statement be read through a qualified statement? It reports disagreement even when both concern the same context. Moving a qualification into a different context requires proof or a contextual indication. Thus explaining a possible reading and establishing that it governs this case are distinct tasks.

Example: Two witnesses and two upright witnesses (§189)

The reported majority connects the qualified wording with the unqualified wording. The alternative preserves the latter's scope and treats the qualification as emphasis. Identify the evidential disagreement before choosing between them.

Try it before reading the feedback

1. Reconstruct §186 as an answer to the objection reported in §185.
2. State what additional premise is needed before transferring a qualification into a different context.

Feedback and assessment

1. The answer locates inclusion in the understood general meaning, rather than forcing the excepted item into the literal genus. Actual usage receives an explanation.
2. The missing premise must connect the contexts through evidence. Mere similarity of wording does not establish identical scope or justify transferring every qualification.

Advanced - Research

Open this lesson online

Aim. Test a scope interpretation while separating linguistic possibility, contextual warrant and a reported juristic preference.

Ordered readings. §183 · §185 · §186 · §187 · §189 · §193

Develop a short argument about how §§186-189 distribute the burden of proof. Section 186 explains apparent departure from literal inclusion through the intended general meaning. Section 187 permits suspension about scope, while §189 distinguishes same-context and different-context qualifications. None supplies permission to enlarge meaning merely because a preferred result would follow.

Use §193 to ask how strong the contextual warrant is: decisive, preponderant, or unresolved. Keep that assessment separate from whether the proposed reading is linguistically intelligible. If comparing another author, retrieve the actual passage and record its edition and wording before attributing agreement.

Example: The repentance exception (§187)

The passage places several consequences before an exception for those who repent. Treat the reach of the exception as the problem to investigate, rather than importing a school's final ruling as its linguistic solution.

Try it before reading the feedback

1. Write 200 words identifying two possible scopes and the evidence needed to choose between them.
2. Distinguish Ibn Rushd's own explanation from positions he reports in §189.

Feedback and assessment

1. A strong response states exactly which clauses each scope modifies and supplies a relevant indication, or explains why the evidence remains insufficient.
2. Credit a comparison only when its speaker, wording and evidential basis are identified. A list of final rulings does not by itself explain the disagreement about scope.

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20. How does an unstated meaning bind?

Distinguish what context supplies with certainty from what it makes probable or leaves unresolved.

Before you begin

Distinguish verbal form from understood meaning.

Recognise that evidence can be decisive, preponderant or unresolved.

Key terms in this lesson

mafhūm - Understood meaning, including meanings supplied through omission, substitution or other contextual interpretation.

dalīl al-khiṭāb - Inference that a ruling attached to a qualification does not apply when that qualification is absent; its force is examined rather than assumed.

naṣṣ / ẓāhir / mujmal - Here, decisive, preponderant and unresolved signification; §193 applies these ranks to understood meanings as well as verbal forms.

ghāya - An endpoint marked by expressions such as 'until' or 'up to', whose significance depends on the ruling's relation to that limit.

Linked Bidāya applications

B09. A traveller who fasts: an implied condition in the verse
Illustrative parallel. Fasting; ch. on those permitted to break the fast; the traveller's performance of the fast.

Basic - Foundations

Open this lesson online

Aim. Classify three unstated meanings according to the strength of their contextual support.

Ordered readings. §193 · §194 · §195

Words can communicate more than their explicit grammatical parts. Section 193 explains that omission and related processes depend on contextual indications. An unstated meaning can therefore be certain; it need not be a speculative addition. Conversely, an interpreter cannot supply any missing meaning that seems useful.

Section 194 gives three different strengths. Asking a village certainly means asking its inhabitants. A report denying a fast may deny completeness or acceptance, with one reading more apparent. Catching a prayer cycle can concern merit, legal effect or time, leaving a question to resolve. The important contrast is the strength of the warrant, rather than whether every word is spoken.

Example: ‘Ask the village’[1] (§194)

The inhabitants are not named, but the communicative situation supplies them. This is Ibn Rushd’s example of an understood meaning with the force of an unambiguous expression.

Try it before reading the feedback

1. Explain why ‘unstated’ does not mean ‘uncertain’.
2. Identify what remains undecided in the prayer-cycle example.

Feedback and assessment

1. Context can determine an omitted element decisively. Certainty concerns the evidence for the meaning, not simply the presence of its words.
2. The uncertainty concerns what has been attained: merit, legal effect or the appointed time. Choosing one requires more than repeating the report’s wording.

Intermediate - Close reading

Open this lesson online

Aim. Distinguish supplying an omitted meaning from inferring a contrary ruling when a qualification is absent.

Ordered readings. §193 · §194 · §195

Section 194 moves from omitted meanings to dalīl al-khiṭāb. These should not be collapsed. Supplying ‘inhabitants’ explains what asking a village means. Inferring a ruling for a case lacking a mentioned qualification asks a further question: does the ruling depend on that qualification in the relevant way?

Section 195 examines descriptions, conditions, restrictive expressions and endpoints. Their grammatical labels do not replace an assessment of force. Ibn Rushd allows decisive, apparent and unresolved cases within this field. The key is whether dependence on the qualification is known, probable or insufficiently established.

Example: Fasting until night (§195)

The endpoint indicates a change in the obligation to continue this fast. Compare its clarity with the reported disagreement about descriptions such as ‘grazing’ in the sheep example.

Try it before reading the feedback

1. Explain why mentioning a description does not automatically establish every proposed contrary implication.
2. Compare the village example with the fasting endpoint: what different interpretive work occurs?

Feedback and assessment

1. The inference requires a warranted connection between the qualification and the ruling. The passage reports disagreement about that connection across kinds and cases.
2. The village example supplies an omitted object; the endpoint delimits the reach of an obligation. Both depend on context, but they solve different interpretive problems.

1. Qurʾān, Yūsuf 12:82.

Advanced - Research

Open this lesson online

Aim. Reconstruct how the classification of implied meanings connects to the later account of legal qiyās.

Ordered readings. §193 · §194 · §195 · §213 · §214

Section 195 explicitly postpones fuller treatment of contextual ranks to the discussion of qiyās. Follow that cross-reference to §§213-214 and explain why the same degrees of signification reappear. The research question is whether a particular proposed implication has the requisite warrant, rather than whether ‘implication’ is accepted as one undifferentiated method.

For an applied comparison, B09 concerns an omitted condition in the traveller’s fasting verse. Treat the application card as an editorial lead. Retrieve its Bidāya passage, identify the proposed omission and the accompanying reports, and assess what each contributes. Do not assume grammar settles the complete legal dispute.

Example: The transition promised in §195

The text links the force of conditional or restricted speech to the ranks of indications later discussed under qiyās. This supplies an internal research connection without requiring a speculative historical influence claim.

Try it before reading the feedback

1. Map one decisive and one unresolved case to §§213-214, stating the difference in their evidence.
2. Specify the source evidence required before accepting the proposed B09 comparison.

Feedback and assessment

1. A strong map explains the indication and its strength; attaching the labels naṣṣ or mujmal without reasons is insufficient.
2. The comparison needs the actual Bidāya wording, a precise locator and an account of the reports’ role. It remains proposed until those materials have been examined.

21. What does an imperative require?

Separate a demand’s legal force from its timing, repetition and surrounding circumstances.

Before you begin

Know the difference between obligation and recommendation.

Understand how contextual indications affect an expression’s force.

Key terms in this lesson

amr - Command; §197 distinguishes it from request and supplication through the relation between speakers.

ṣīgha - The verbal form, whose contribution must be distinguished from legal usage and surrounding indications.

‘urf shar‘ī - Established legal usage: a source for determining a command’s legal force beyond its ordinary linguistic form.

fawr / takrār - Immediacy and repetition; §201 treats these as distinct questions that the imperative alone does not settle.

Linked Bidāya applications

B01. Marriage: one form of act, different legal rulings
Illustrative parallel. Marriage; ch. 1, preliminaries, issue 1: the legal status of marriage.

B16. Pilgrimage now or later: a control against a simplistic application
Explicit caution against a reductive parallel. Pilgrimage; first kind of inquiry: when the pilgrimage obligation falls due.

Basic - Foundations

Open this lesson online

Aim. Explain why recognising an imperative does not settle every question about the required action.

Ordered readings. §197 · §199 · §200 · §201 · §203

A verbal form can function differently according to who speaks and to whom. Section 197 distinguishes command, request and supplication through those relations. Sections 199-200 then separate ordinary linguistic convention from legal usage: obligation and recommendation are legal meanings whose evidence must be investigated.

Once a demand is identified, further questions remain. Does it require immediate performance? Must the act recur? Section 201 says the form alone does not supply those answers. Section 203 adds that a command after a temporary prohibition may remove a restriction. The circumstance can therefore alter what the imperative communicates.

Example: Hunting after consecration (§203)

The passage reports al-Ghazālī’s explanation: a command to hunt when consecration ends more apparently lifts the preceding restriction. It does not make every person obliged to hunt.

Try it before reading the feedback

1. Name three distinct questions that can be asked about one command.

2. Explain the relevance of the earlier prohibition in the hunting example.

Feedback and assessment

1. Distinguish obligation or recommendation, timing, and repetition. An answer to one does not automatically answer the others.

2. The command is linked to the disappearance of the reason for restriction. That connection supports permission here; it is not a rule that every command always means permission.

Intermediate - Close reading

Open this lesson online

Aim. Reconstruct the evidence Ibn Rushd proposes for a command's legal force without conflating it with timing or repetition.

Ordered readings. §198 · §199 · §200 · §201 · §203

Section 198 lays out competing classifications before Ibn Rushd investigates them. Section 200 reports the majority's apparent-obligation reading and a view suspending judgement. His proposed inquiry is inductive: examine legal usage and how the Companions received commands without accompanying indications. His preference for obligation as more prudent should be read with that evidential argument.

Section 201 preserves the alternative if an established legal convention cannot be shown. It also separates the demand's strength from when and how often the act is performed. Section 203 is explicitly attributed to Abū Ḥāmid at its decisive point; do not silently erase that attribution when summarising the discussion.

Example: The sensible question 'When?' (§201)

A recipient may understand that an action is demanded while still needing its time clarified. The possibility of that question shows why temporal force needs its own indication.

Try it before reading the feedback

1. Distinguish the disputed positions, proposed investigation and tentative preference in §200.
2. Explain why absence of an intrinsic immediacy marker does not prove that delay is always permitted.

Feedback and assessment

1. A good reconstruction keeps reported views separate from the author's reasons and identifies legal usage as evidence to investigate.
2. Another indication may require immediate action. Section 201 denies that the form alone settles timing; it does not remove all possible temporal requirements.

Advanced - Research

Open this lesson online

Aim. Test an application of the command discussion against an actual dispute without reducing that dispute to a grammatical slogan.

Ordered readings. §199 · §200 · §201 · §203 · §204 · §205

Construct a matrix separating legal force, time, repetition, completion and sufficiency. Sections 204-205 show why those distinctions matter: completing a commanded act and satisfying the original duty are not interchangeable descriptions when a defect remains. Identify which proposition each passage establishes before carrying it into an applied case.

Use B16 as a proposed comparison. Its pilgrimage dispute involves the structure of the available time and the risk of postponement. Retrieve the Bidāya discussion and determine whether the unrestricted-command question actually explains the disagreement. A successful comparison may reveal a limit on a proposed application rather than confirm it.

Example: Completing an invalidated pilgrimage (§205)

The obligation to complete an observance does not show that its defective performance discharges the original duty. Ibn Rushd's correction adds completeness, prescribed character and all required conditions.

Try it before reading the feedback

1. Write two propositions that distinguish commanded completion from sufficient performance.
2. State the exact evidence needed to assess B16 and any textual supplements visible in the selected Darūrī passages.

Feedback and assessment

1. The first proposition concerns what must now be done; the second concerns whether the original requirement has been satisfied. The text's conditions explain why these can diverge.
2. Use the actual applied argument and precise locators. Where the edition supplies wording, consult its note rather than treating that wording as an uncontested reading.

Unit 6. Qiyās and legal extension

22. Is legal qiyās a syllogism?

Follow Ibn Rushd's reconstruction of much legal qiyās as the warranted understanding of a universal through particular wording.

Before you begin

Understand the difference between an expression's form and its intended meaning.

Read the examples of specific wording and contextual warrant in §§191 and 193.

Key terms in this lesson

aṣl / far' - The original case, where the ruling is clearer, and the derivative case to which the ruling is extended.

'illa - The operative ground or shared attribute relevant to the ruling; identifying it requires evidence.

ibdāl - Substitution: here, using particular wording for an intended more general meaning.

qiyās - A term whose use among jurists Ibn Rushd investigates; he distinguishes most such uses here from syllogistic derivation.

qarīna - An accompanying indication warranting the understood meaning; §213 requires a kind demonstrably taken into account by the Law.

Linked Bidāya applications

B22. Ribā in foodstuffs: competing identifications of the operative feature
Close parallel, with differences of assessment. Sales; part 2, causes of invalidity; ribā in the named foodstuffs and their analogues.

B23. Dower and the theft threshold: verbal resemblance is not one legal meaning
Express criticism of a defective analogy. Marriage; ch. 2; dower, first topic, issue 2: critique of the minimum-dower analogy.

Basic - Foundations

Open this lesson online

Aim. Explain the movement from a stated case to a wider intended meaning without reducing it to superficial similarity.

Ordered readings. §191 · §193 · §210 · §212 · §213

Begin with §191: particular wording can convey a wider intended meaning when context warrants it. Section 210 then introduces the jurists' original case, derivative case and shared ground. Ibn Rushd asks what those jurists are actually doing when they use qiyās.

Section 212 distinguishes an expressly stated general ground from one understood through context. In the latter case, the interpreter establishes the intended universal and then investigates whether another case falls under it. Section 213 restricts the warrant: resemblance alone is insufficient; the relevant kind of indication must be one the Law takes into account.

Example: Silver and gold vessels (§212)

Ibn Rushd presents extravagance as the understood wider meaning behind the prohibition concerning silver vessels, and gold vessels as another instance. This is his example of contextual extension, not permission to invent any convenient purpose.

Try it before reading the feedback

1. Identify the original case, proposed universal and derivative case in this example.

2. State the two things an interpreter must establish before extending the ruling.

Feedback and assessment

1. Silver vessels supply the stated case, extravagance the proposed universal, and gold vessels the additional case.

2. One must warrant that this universal is intended and establish that the new case falls under it. Simply observing a likeness does neither by itself.

Intermediate - Close reading

Open this lesson online

Aim. Reconstruct why Ibn Rushd distinguishes most juristic qiyās from syllogistic derivation while retaining a role for reasoning.

Ordered readings. §210 · §212 · §213 · §223 · §224

The contrast concerns the source of the ruling. In §§212-213 the ruling is reached through what revealed discourse signifies, including its warranted understood meaning. Inquiry identifies that meaning and determines whether another case belongs under it. Calling this a semantic operation does not eliminate the inquiry needed to justify it.

Section 223 repeatedly qualifies the claim: it concerns most cases of what jurists call qiyās. It distinguishes a case whose wording provides no indication of the proposed ground from one whose understood meaning includes it. Section 224 then challenges accepting apparent verbal forms while refusing equally warranted apparent meanings.

Example: The cat’s expressly stated ground (§212)

The example about a cat circulating among people has its ground stated in the report. Ibn Rushd classifies that generality differently from a ground inferred through the understood meaning of particular wording.

Try it before reading the feedback

1. Contrast the cat example with the vessel example using the location of the operative ground.

2. Correct the sentence ‘Ibn Rushd rejects all qiyās and thinks legal interpretation involves no reasoning’.

Feedback and assessment

1. In the first, the ground is expressed; in the second, context must establish it. Both require attention to scope, but their immediate evidential routes differ.

2. His account reclassifies and evaluates much qiyās; it neither rejects every extension nor removes reasoning. Preserve ‘most cases’ and the demand for contextual warrant.

Advanced - Research

Open this lesson online

Aim. Evaluate the force and limits of Ibn Rushd’s answer to the objection that legal rulings cannot be inferred from things’ essences.

Ordered readings. §191 · §213 · §219 · §221 · §223 · §224 · §225

Reconstruct the objection reported in §223 and specify precisely which practice it defeats. Ibn Rushd’s answer turns on whether the given discourse contains an indication of the ground. Section 225 adds a restriction: testing and division cannot manufacture a legitimate semantic alteration when the requisite indications are absent.

Distinguish three operations in your reconstruction: establishing that substitution occurs, determining the intended universal, and identifying an instance under it. If comparing Aristotle, al-Ghazālī or the Bidāya, present that as a further investigation. The present passage alone does not establish equivalence with a named external theory.

Example: Wine-drinking and accusation penalties (§223)

The text contrasts an analogy lacking an indication of its proposed ground with an extension grounded in the original discourse's understood meaning. The decisive issue is the warrant, not simply whether two cases can be compared.

Try it before reading the feedback

1. Write a premise-and-conclusion reconstruction of the objection and the limited reply.
2. Use B23 as a research lead: what evidence would distinguish genuine shared meaning from a merely verbal resemblance?

Feedback and assessment

1. A strong reconstruction preserves the qualified scope of the reply and does not infer a ruling from an essential property independently of legal discourse.
2. A completed comparison requires the actual dower argument and its locator. Show how the shared description relates to each ruling; matching words alone cannot establish a common operative meaning.

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23. Which extensions are stronger?

Compare the evidence behind a fortiori, equal, suitable and resemblance-based extensions, including their internal variations.

Before you begin

Understand the source of an intended universal in §§212-213.

Distinguish decisive evidence from preponderant and unresolved indications.

Key terms in this lesson

faḥwā al-khiṭāb - The purport of discourse, illustrated where an unmentioned case has a stronger claim to the ruling than the stated case.

qiyās fī maʿnā al-aṣl - Extension to a case sharing the original case's relevant meaning with respect to the ruling.

munāsib - A suitable ground connected with a kind of benefit acknowledged by the Law; proximity and remoteness matter.

qiyās al-shabah - Comparison through resemblance suggesting an unidentified suitable ground; §218 treats most instances as unresolved.

sabr wa-taqsīm - Testing and division: enumerating candidate meanings and eliminating alternatives, subject to the limits discussed in §§221 and 225.

Linked Bidāya applications

B20. Jewellery: resemblance to usable possessions or to monetary wealth?
Illustrative parallel. Zakāt; second division: assets subject to zakāt; gold and silver jewellery.

B21. Deathbed divorce: blocking an evasion without erasing doctrinal difficulty
Express methodological discussion in the Bidāya. Divorce; second division, ch. 2: irrevocable divorce during fatal illness.

B22. Ribā in foodstuffs: competing identifications of the operative feature
Close parallel, with differences of assessment. Sales; part 2, causes of invalidity; ribā in the named foodstuffs and their analogues.

Basic - Foundations

Open this lesson online

Aim. Explain why a stronger relevant case and an uncertain resemblance do not have the same evidential force.

Ordered readings. §214 · §215 · §216 · §217 · §218

Section 214 frames the discussion through certainty, preponderance and unresolved meaning. The following sections examine stronger relevant cases, equal relevant meanings, suitable grounds and resemblance. These labels describe different kinds of support, not four interchangeable ways to get a desired ruling.

The stronger-case example in §215 makes the unstated case clearer than the stated one. By contrast, §218 describes resemblance where the suitable ground remains unidentified. Section 217 also warns that invoking benefit in a very remote and general way can exceed deriving a ruling from the Law. Calling something beneficial is therefore not the end of the argument.

Example: From 'Uff'[2] to greater mistreatment (§215)

The prohibition of a slight expression of disrespect supports the stronger case of more serious mistreatment. The relevant relation is the greater degree of the prohibited meaning, rather than an accidental resemblance between actions.

Try it before reading the feedback

1. Explain what makes the unstated case stronger in §215.
2. State what remains unknown in the resemblance described in §218.

Feedback and assessment

1. The prohibited meaning is present more strongly, which warrants the extension. Mere greater physical size or inconvenience would not supply the same relation.
2. The appropriate operative ground has not been securely identified. A suggested resemblance therefore does not automatically give decisive or even preponderant evidence.

Intermediate - Close reading

Open this lesson online

Aim. Distinguish a ranking of kinds from a claim that every instance in a kind has identical certainty.

Ordered readings. §215 · §216 · §217 · §218 · §219 · §221

Ibn Rushd qualifies his rankings. Sections 215-216 allow differences in clarity within their kinds. Section 217 places suitable grounds third because they are usually less clear, while distinguishing proximate, intermediate and very remote benefits. Section 218 treats most resemblance arguments as unresolved, while allowing that some approach the second rank.

Sections 219 and 221 identify two separate uncertainties: whether particular wording stands for any universal, and which universal is intended. Eliminating candidate grounds addresses the second question only after the first has been established or independently investigated. Keep those burdens of proof distinct.

Example: The named foodstuffs (§218)

Candidates include staple nourishment, edibility and measure. The difficulty is not merely finding a shared feature; it is establishing which feature, if any, gives the legally relevant intended universal.

2. Qurʾān, al-Isrāʾ 17:23.

Try it before reading the feedback

1. Describe the two uncertainties using the foodstuffs example.
2. Explain why ‘all suitable grounds are certain’ and ‘all resemblance is worthless’ both overstate these passages.

Feedback and assessment

1. First establish whether extension beyond the named items is warranted; then establish the intended universal. A list of shared properties does not settle either automatically.
2. The text grades kinds and recognises variation within them. Suitability can become too remote, while some apparent resemblance may amount to the original case’s relevant meaning.

Advanced - Research

Open this lesson online

Aim. Evaluate a proposed ground through its textual warrant, legal recognition and degree of proximity.

Ordered readings. §213 · §217 · §218 · §221 · §222 · §225

Prepare an evidence table with four columns: proposed universal, indication that it is intended, evidence that its kind is legally recognised, and uncertainty remaining. Section 222 prevents mere accompanying presence and absence from being treated as an automatically sufficient identification of the ground. Section 225 limits testing and division where contextual indications are missing.

Choose B21 or B22 for a proposed Bidāya investigation. The former examines deathbed divorce, already mentioned in §217; the latter concerns rival grounds in the foodstuffs discussion. Compare the actual reasoning and possible differences of assessment. Do not force either work into blanket approval or rejection of every purposive argument.

Example: Remote benefit in deathbed divorce (§217)

The text uses this case while criticising excessively general welfare reasoning. A research comparison must establish the precise ground, its proximity and its legal warrant before claiming consistency or contradiction with another treatment.

Try it before reading the feedback

1. Fill the four-column table for one candidate ground from §218.
2. State what would count as evidence for, or against, your proposed cross-work comparison.

Feedback and assessment

1. A strong table distinguishes an attractive rationale from evidence that it is intended and legally recognised; it may legitimately end with unresolved uncertainty.
2. Use exact passages and locators, distinguish reported views from Ibn Rushd’s assessments, and identify the disputed inference. Similar vocabulary alone establishes neither doctrinal identity nor inconsistency.

Unit 7. Prophetic action and approval

24. What do action and silence establish?

Identify the circumstances that make a Prophetic action or approval evidence for a particular ruling.

Before you begin

Understand why contextual indications can carry legal meaning.

Distinguish obligation, recommendation and permission.

Key terms in this lesson

iqrār - Tacit approval; §227 requires certain knowledge that the Prophet saw and approved the relevant act.

fiʿl - Action, whose legal force depends on its role and circumstances rather than an imperative verbal form.

bayān - Explanation or clarification: an action can explain a revealed expression and share that expression's legal ruling.

khuṣūṣiyya - A feature peculiar to the Prophet, established by an indication; it cannot simply be assumed to bind others.

Linked Bidāya applications

B24. Triple divorce after mutual imprecation: the limits of tacit approval
Illustrative parallel. Divorce; first division, ch. 2: whether three divorces may be pronounced together; the report of ʿUwaymir.

Basic - Foundations

Open this lesson online

Aim. Distinguish an explanatory action, an action known to be peculiar to the Prophet, and an action whose force remains unclear.

Ordered readings. §226 · §227 · §228 · §229

Section 226 treats action and approval as contextual evidence. Section 227 specifies an act in the Prophet's presence that he certainly saw and approved. Approval shows that the act may occur in that manner; it can confirm a legal judgement's binding force or establish permissibility where an act was thought forbidden. The conclusion must preserve the relevant circumstances.

Section 228 considers actions explaining a revealed expression. Their ruling follows what they explain: obligation where the expression obliges, recommendation where it recommends. Section 229 separates actions known to be peculiar to him from actions whose explanatory or peculiar status is unknown. For the unresolved kind, the text does not assign one fixed ruling merely because an action occurred.

Example: Learning prayer through an action (§228)

The instruction to pray as the Prophet was seen praying establishes an explanatory connection. That connection matters when determining what the observed action teaches about the commanded observance.

Try it before reading the feedback

1. Explain why seeing an action and knowing what ruling it establishes are different achievements.
2. List the conditions specified for tacit approval in §227.

Feedback and assessment

1. The action may explain an obligation, explain a recommendation, be peculiar to the Prophet, or have an unresolved status. Observation alone does not decide among these.
2. The passage requires certainty that the act occurred in his presence, was seen and was approved. The proposed conclusion must preserve its relevant circumstances.

Intermediate - Close reading

Open this lesson online

Aim. Compare rival interpretations of Prophetic action without treating the same observation as decisive for incompatible conclusions.

Ordered readings. §227 · §228 · §229

Section 229 reports obligation, recommendation and suspension as competing interpretations of actions whose status is unknown. It explicitly identifies suspension as Abū Ḥāmid's preference, then discusses arguments and replies before giving the more apparent conclusion that no definite ruling can be assigned from that kind alone.

An important feature of the discussion is the reuse of evidence: Companions' imitation can be invoked by advocates of recommendation or obligation. A reply therefore asks whether those Companions possessed an additional indication that the action explained an existing duty or recommendation. Their conduct cannot be isolated from what they may have known.

Example: Removing sandals during prayer (§229)

The Companions' imitation is reported as evidence in the debate. The passage shows why imitation by itself does not uniquely select obligation rather than recommendation or context-dependent explanation.

Try it before reading the feedback

1. Identify the extra premise each interpretation needs in the sandals example.
2. Explain why an explanatory action differs from an action of unresolved status.

Feedback and assessment

1. Each view must establish what the Companions understood the action to signify. The same observed imitation cannot settle that understanding without further evidence.
2. An explanatory action already has an evidential relation to a revealed expression. The unresolved kind lacks a settled relation from which one definite legal force can be drawn.

Advanced - Research

Open this lesson online

Aim. Assess the exact object of a claimed approval and the evidential limits of an action without verbal form.

Ordered readings. §226 · §227 · §228 · §229

Construct an argument with separate premises for occurrence, awareness, approval and the legal identity of the act. Section 227 supplies conditions for approval; §229 shows why an action's occurrence leaves several possible legal statuses open. Do not replace either analysis with a general slogan that every action is obligatory or every silence is permission.

B24 offers a proposed comparison concerning a divorce utterance after mutual imprecation. Retrieve the Bidāya passage and examine whether the relevant marriage still subsisted. Also consult the edition's note on the supplied transition in §229 before treating its threefold division as wholly uncontested wording.

Example: An unresolved action’s competing statuses (§229)

The text leaves obligation, recommendation, permission and Prophetic peculiarity among the possibilities. Its conclusion concerns the absence of evidence selecting one, rather than the impossibility of finding further evidence.

Try it before reading the feedback

1. State the missing premise needed to move from observed silence to the precise ruling claimed in B24.
2. Explain how a textual supplement affects the confidence of an argument based on §229’s enumeration.

Feedback and assessment

1. A strong answer verifies the legal object and circumstances of the act. Approval of an utterance without an existing marriage would not automatically establish the same ruling for divorce within a subsisting marriage.
2. The substantive distinction may still have support, but identify supplied wording and consult the apparatus. Do not present editorial reconstruction as an independently verified manuscript reading.

Unit 8. Juristic inquiry and authority

25. Who is qualified to inquire?

Relate knowledge of sources and methods to the precise question on which independent inquiry is undertaken.

Before you begin

Distinguish a source of a ruling from the rule used to interpret it.

Recognise the importance of transmission, Arabic usage and consensus in the preceding discussions.

Key terms in this lesson

ijtihād - Exerting one's utmost capacity to seek an answer using the required instruments, as defined in §231.

mujtahid - An inquirer possessing the relevant sources, rules and conditions needed to derive a ruling.

qawānīn - Methodological rules governing the derivation of rulings; access to sources alone does not supply them.

ta'dīl - Accreditation of a transmitter; §233 discusses qualified reliance on another scholar's assessment and methodology.

Basic - Foundations

Open this lesson online

Aim. Explain why having a source collection and being qualified to use it are different requirements.

Ordered readings. §231 · §232 · §233 · §234 · §236

Section 231 defines inquiry through effort and the instruments it requires. The inquirer must know the sources and possess the rules and conditions for deriving rulings. The following sections describe relevant Qurʾānic material, reports, consensus and sufficient Arabic. These are connected capacities, rather than a list of titles to collect.

The text permits concessions concerning memorisation: knowing where relevant material is found can suffice in the circumstances described. That does not dispense with understanding it. Section 236 also allows inquiry on a particular question when the person's requirements are sufficient for that question, while distinguishing this from competence to answer every case.

Example: Knowing where to find a verse (§232)

The passage distinguishes memorising the relevant verses from knowing their locations and being able to consult them when a question arises. It retains the preceding requirement to know how the evidence bears on rulings.

Try it before reading the feedback

1. Name one concession about access and one substantive requirement it does not remove.
2. Explain the difference between limited knowledge and sufficient knowledge for a limited question.

Feedback and assessment

1. Memorisation may be relaxed; the ability to understand relevant evidence and use the required rules remains.
2. A limited question can still demand substantial knowledge. Section 236 requires sufficiency for that question, rather than granting permission merely because someone knows a few relevant texts.

Intermediate - Close reading

Open this lesson online

Aim. Analyse how the concessions in §§232-236 preserve evidential responsibility rather than replacing it with unrestricted reliance.

Ordered readings. §231 · §232 · §233 · §234 · §235 · §236

The requirements are calibrated to what inquiry needs. Section 233 permits reliance on a leading scholar's transmitter accreditation under a further condition: the inquirer knows the accreditor's approach and finds it compatible with his own. Reliance is therefore qualified by methodological understanding.

Section 234 supplies linguistic competence before the other operations can succeed. Section 235 makes the disputed theological requirement conditional on a particular account of the first obligation. Section 236 then restricts issue-specific inquiry by sufficiency, not by the person's general reputation. Track what each concession changes and what it leaves necessary.

Example: Using a hadith authority's accreditation (§233)

The permitted reliance is more demanding than recognising a famous name. The text requires knowledge of the authority's approach to criticism and accreditation and its agreement with the inquirer's approach.

Try it before reading the feedback

1. Explain why this concession is not identical to independent verification of every transmitter.
2. Build a short competence checklist for one interpretive question, explaining why each item is relevant.

Feedback and assessment

1. It remains a form of following authority, which §233 expressly acknowledges. The concession addresses practical difficulty while retaining conditions on the reliability of that reliance.
2. A useful checklist links Arabic, transmission, relevant sources and contrary evidence to the actual question. A generic list without those connections does not demonstrate sufficiency.

Advanced - Research

Open this lesson online

Aim. Formulate and test a defensible boundary for issue-specific competence from the text's stated requirements.

Ordered readings. §231 · §233 · §234 · §235 · §236 · §251

Read §236 as a relation between possessed capacities and a defined question. The proposed inquiry must establish that omitted fields are genuinely irrelevant, rather than assuming that they contain no counterevidence. Develop an argument about where that burden of proof lies using §231's sources, rules and conditions.

Compare qualified reliance in §233 with the more knowledgeable jurist in §251. The former concerns source accreditation; the latter concerns confidence in another's judgement relative to one's own inquiry. If extending the comparison to a modern research tool or institution, distinguish that proposed application from what the medieval text itself establishes.

Example: The limited inquirer’s relation to one question (§236)

Ibn Rushd compares that relation with the unrestricted jurist’s relation to all questions. The analogy concerns sufficiency of the relevant requirements, not equality in every branch of learning.

Try it before reading the feedback

1. Write a justified boundary for one imagined inquiry, naming a possible source of evidence that could defeat it.
2. Distinguish access, comprehension, methodological competence and warranted reliance.

Feedback and assessment

1. A strong boundary is revisable when relevant counterevidence appears; it does not make ignorance itself a reason for excluding a field.
2. Source retrieval supplies material, comprehension grasps it, method governs inference, and warranted reliance concerns justified confidence in another’s work. The passages allow concessions without merging these functions.

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26. Can a jurist be wrong without sinning?

Separate the truth of a ruling, the strength of the inquiry and the conditions of culpability.

Before you begin

Distinguish decisive evidence from preponderant probability.

Understand the competence and effort required for independent inquiry.

Key terms in this lesson

taṣwīb - Declaring the independent jurists correct; the claim that all conflicting conclusions are correct is disputed in §§237-245.

khaṭa’ - Error; Ibn Rushd distinguishes its occurrence from culpability for it.

ithm - Sin or culpability, whose presence cannot simply be inferred from every mistaken conclusion.

ẓann rājiḥ - Preponderant judgement supported by evidence; it is distinguished from a merely personal inclination or an evenly balanced uncertainty.

Linked Bidāya applications

B25. A mistaken qibla: required success or adequately conducted inquiry?
Illustrative parallel. Prayer; second division, conditions; facing the qibla, second issue.

B26. A physician’s mistake: compensation need not imply moral wrongdoing
Illustrative parallel. Offences and injuries; second part, compensation; accidental injury caused in medical treatment.

Basic - Foundations

Open this lesson online

Aim. Explain why an excused mistake does not make a contradictory conclusion true.

Ordered readings. §237 · §239 · §243 · §244 · §245

Section 237 opens a question: is there a determinate ruling to seek, or is every jurist correct upon reaching a preponderant judgement? Section 239 gives Ibn Rushd's own answer. Discourse signifies a determinate ruling, even when its evidence is probable rather than decisive. Conflicting conclusions therefore do not all become true simply because they were sincerely reached.

Sections 243-245 distinguish error from sin. Fallible inquiry into probable evidence can produce a pardoned mistake. Section 244 adds qualifications concerning the clarity of evidence and impediments such as partiality. The account is therefore neither universal correctness nor a blanket exemption for every person who claims to have tried.

Example: Unintentional mistake (§243)

The text appeals to forgetfulness, inattention and inadvertence to show that an error can be pardoned. Pardon changes the person's culpability; it does not turn the mistaken conclusion into the correct one.

Try it before reading the feedback

1. Separate the questions 'Is the conclusion correct?' and 'Is the person blameworthy?'.
2. Identify one reason the qualifications in §244 matter.

Feedback and assessment

1. Truth concerns what the evidence signifies. Culpability concerns the person's relation to the error, including knowledge and the conditions of inquiry.
2. The clarity of evidence and possible partiality affect responsibility. The text does not promise that every mistake by any claimant to inquiry is excused.

Intermediate - Close reading

Open this lesson online

Aim. Reconstruct Ibn Rushd's replies to the two arguments attributed here to al-Ghazālī.

Ordered readings. §239 · §240 · §241 · §242 · §243 · §244 · §245

Mark the speakers before reconstructing the argument. Section 240 reports al-Ghazālī's first route: a determinate obligatory result would require decisive evidence, otherwise attaining it would exceed capacity. Section 241 replies that evidence can itself yield a preponderant indication on which action is required; personal inclination does not create its force.

Section 242 reports a second route from the absence of sin to the absence of error. Section 243 rejects that entailment. Section 244 prevents the reply from becoming an unqualified pardon for every failure. These are distinct disputes about evidential attainability and culpability; answering one does not remove the need to answer the other.

Example: The disputed entailment (§§242-243)

The reported argument moves from 'not sinful' to 'not erroneous'. Ibn Rushd's reply identifies pardoned error as the missing possibility, breaking that inference without denying that pardon occurs.

Try it before reading the feedback

1. Write each reported argument and its reply in two or three propositions.
2. Explain why preponderant evidence is not equivalent to evidence balanced equally between contradictories.

Feedback and assessment

1. Keep §240's capacity argument distinct from §242's culpability argument, and attribute the replies to Ibn Rushd rather than to the position he criticises.
2. Section 241 treats an evenly balanced indication as unresolved, while preponderance belongs to what the evidence signifies. An interpreter's preference alone does not supply that evidential superiority.

Advanced - Research

Open this lesson online

Aim. Evaluate the relation between determinate truth and fallible obligation while controlling speaker attribution and the scope of pardon.

Ordered readings. §237 · §239 · §240 · §241 · §242 · §243 · §244 · §245

Separate three claims in a short analytical essay: the discourse has a determinate signification; available evidence can warrant a fallible conclusion; and a mistaken inquirer may be excused. Explain how Ibn Rushd connects them without making certainty the only basis of action. Then identify exactly where §244 limits a general claim about excuse.

Any assessment of al-Ghazālī's own position requires the relevant Mustaṣfā passage, its context and a precise locator. The Darūrī gives Ibn Rushd's report and criticism, not independent verification of every feature of his opponent's view. B25 and B26 can supply further applied comparisons after their sources are checked.

Example: Evidence and natural inclination (§§240-241)

Ibn Rushd rejects the reported claim that preponderance arises only from individual inclination. His criticism concerns the source of evidential force, not the assertion that all qualified people invariably recognise it correctly.

Try it before reading the feedback

1. Defend or challenge one step in Ibn Rushd's reasoning while preserving all three distinctions.
2. Give the evidence required to compare this account with al-Ghazālī or the mistaken-qibla case in B25.

Feedback and assessment

1. A useful critique identifies a premise and its textual support rather than replacing the position with 'everyone is right' or 'every error is sinful'.
2. A completed comparison needs exact passages, speaker identification and attention to what is at issue: truth, required inquiry, repetition of an act or culpability. These questions cannot be treated as synonyms.

27. What should happen when proofs conflict?

Distinguish apparent conflict, unresolved equality and justified evidential preference.

Before you begin

Understand why probable evidence can warrant action.

Distinguish a stronger indication from a personal preference.

Key terms in this lesson

taʿāruḍ - Conflict between evidence as it appears to an inquirer; §247 distinguishes this from contradiction within the Law itself.

tarjīḥ - Establishing and following the evidentially stronger judgement, rather than selecting a preferred result without warrant.

tawaqquf - Suspending judgement; §246 asks what this can mean when a person must act in one of two opposed ways.

iḥtiyāṭ - Caution; the text weighs avoiding omission against the danger of adding an unsupported requirement.

barāʾa aṣliyya - Original nonliability, invoked by the Ẓāhirī response reported in §247 when apparently equal evidence does not establish an obligation.

Linked Bidāya applications

B14. The sales-session option: what counts as “separation”?
Illustrative parallel. Sales; part 3, conditions of validity, ch. 1: the contract and the parties’ option before separation.

B27. Cupping while fasting: three ways of treating conflicting reports
Illustrative parallel. Fasting; ch. on acts from which the fasting person abstains; cupping.

B28. Deferred animal barter: conflict can concern scope as well as authenticity
Illustrative parallel. Sales; part 2, ribā; exchanging animals with deferred delivery.

Basic - Foundations

Open this lesson online

Aim. Explain why conflicting evidence does not automatically authorise free choice or the strictest possible action.

Ordered readings. §246 · §247 · §256 · §257

Section 246 considers suspension, caution and choice. Each needs examination. Choice would itself amount to a permission requiring justification. Suspension can be practically impossible when one must act one way or another. Caution avoids one possible omission but may introduce something the Law does not require.

Section 247 reports the Ẓāhirī return to original nonliability under apparent equality and locates conflict in the inquirer’s situation. Sections 256-257 then address cases where one judgement is stronger. The aim is to establish that superiority from evidence, not to treat all disagreement as equal or to choose whichever result is most attractive.

Example: The ritual-bathing reports (§246)

The passage uses conflicting reports about what requires bathing to show why practical suspension can fail: the person must either undertake the relevant act or refrain. The example raises an evidential problem rather than supplying a general shortcut.

Try it before reading the feedback

1. Give the objection to unrestricted choice and the difficulty with automatic caution.

2. Distinguish equal evidence from two opinions of unequal evidential strength.

Feedback and assessment

1. Choice adds a claim of permission; caution can add an unsupported obligation. Both need justification.
2. The existence of two opinions does not establish equal support. Section 257 concerns following the judgement whose supporting evidence is stronger.

Intermediate - Close reading

Open this lesson online

Aim. Compare the four responses to apparent conflict and identify the condition under which each is being discussed.

Ordered readings. §246 · §247 · §256 · §257

Construct the sequence carefully. Section 246 reports three responses and raises distinct objections; §247 introduces the Ẓāhirī response as a fourth. Do not silently attribute every reported proposal to Ibn Rushd as his own settled rule. The discussion explains how an inquirer can face apparently contradictory evidence because of incomplete access or failure to distinguish relevant circumstances.

Section 256 declines an exhaustive catalogue of preferences, directing particular considerations back to transmission and meaning. Section 257 establishes following the stronger judgement. These passages do not license intuition without reasons: the relevant question is what produces evidential preponderance in this case.

Example: Missing the abrogating report (§247)

The text names failure to distinguish abrogating from abrogated evidence as one source of apparent conflict. A change in the inquirer’s knowledge can alter the assessment without introducing a contradiction into the Law.

Try it before reading the feedback

1. Tabulate suspension, caution, choice and original nonliability with the reason offered for or against each.
2. Explain why learning a report’s chronology can change the problem rather than merely break a tie.

Feedback and assessment

1. Preserve attribution and the distinction between practical action and evidential judgement. No response becomes universally correct merely because it appears in the list.
2. Chronology may show that two statements do not govern the same circumstances at the same time. The supposed conflict may then be redescribed, rather than settled by arbitrary preference.

Advanced - Research

Open this lesson online

Aim. Audit a proposed resolution of conflicting evidence by identifying exactly what changes the balance or removes the conflict.

Ordered readings. §246 · §247 · §256 · §257

Choose a reported conflict and distinguish authenticity, meaning, scope and chronology. A stronger transmission route and a narrower interpretation solve different problems. Section 256 places preference considerations within the relevant discussions, while §257 requires the resulting stronger judgement. Explain which operation a proposed solution performs.

B27 concerns cupping while fasting; B28 concerns deferred animal exchange. These editorial cards are leads to primary passages. Retrieve one, record its actual alternatives and determine whether the reasoning prefers, reconciles or sets aside apparently conflicting evidence. Do not announce the comparison completed from the card's summary alone.

Example: Adding a precaution can also require proof (§246)

The passage recognises that avoiding blame for omission is not the only concern: adding a requirement unsupported by the Law can also be objectionable. A resolution must justify its normative consequence.

Try it before reading the feedback

1. Write a short case analysis identifying the exact evidential operation and the conclusion it supports.
2. Explain what further evidence would make you revise your proposed resolution.

Feedback and assessment

1. A strong analysis shows why the evidence is stronger, or why the apparent contradiction disappears. Merely choosing the stricter, easier or more familiar result does not perform that work.
2. Name a concrete defeater: a stronger report, a different established context, a chronology or a scope distinction. This makes the proposed judgement accountable to evidence rather than insulated from it.

28. When is following an authority legitimate?

Examine justified trust, the communal need for expertise and the continuing responsibility to investigate new questions.

Before you begin

Know the requirements for independent inquiry in §§231-236.

Distinguish probable confidence from certainty and from unsupported preference.

Key terms in this lesson

taqlīd - Accepting another's statement with preponderant confidence in its truth because of trust in that person, as defined in §249.

farḍ kifāya - A collective obligation whose adequate performance by some suffices for others; §250 applies it to maintaining juristic expertise.

mujtahid - A qualified independent inquirer; §§251-254 distinguish possessing that competence from merely transmitting earlier opinions.

ẓann - Probable judgement: here it can arise from warranted trust in an expert as well as from the expert's examination of evidence.

Basic - Foundations

Open this lesson online

Aim. Explain why Ibn Rushd requires both qualified inquiry and legitimate reliance within a community.

Ordered readings. §249 · §250 · §251 · §255

Section 249 defines following authority through preponderant confidence in a trusted person's statement. It distinguishes this from following the Prophet, which the text grounds in certainty. Ordinary reliance is therefore not presented as possessing exactly the same evidential status as revelation.

Section 250 examines three social arrangements. If everyone undertook independent inquiry, the activities sustaining livelihood would be disrupted. If no one were qualified, many rulings would be neglected. A community therefore needs qualified people who preserve, teach and investigate, alongside people who legitimately rely on them. This is described as a collective obligation.

Example: The three possible arrangements (§250)

Everyone is a jurist; no one is a jurist; or some investigate and others rely. The passage rejects the first two and explains how the third serves both knowledge and the wider requirements of communal life.

Try it before reading the feedback

1. State the problem with each of the first two arrangements.
2. Explain why the third requires more than preserving an expert's name or reputation.

Feedback and assessment

1. Universal specialist inquiry disrupts livelihood; universal absence of competence leaves duties and new questions unattended.

2. The community needs actual preservation, teaching and derivation. Trust has a necessary object: qualified people performing the relevant work, rather than prestige standing in for that work.

Intermediate - Close reading

Open this lesson online

Aim. Distinguish legitimate reliance, qualified transmission and the claim to derive new rulings from inherited opinions.

Ordered readings. §250 · §251 · §252 · §253 · §254 · §255

Section 251 allows a qualified jurist to rely on someone more knowledgeable when confidence in that person's judgement outweighs the judgement reached through his own inquiry. The relevant condition is comparative warranted confidence, not mere seniority or fame.

Section 252 then criticises people who transmit school opinions without possessing independent competence and turn those opinions into sources for new derivation. Sections 253-254 add a temporal argument: past inquiry cannot discharge the communal task forever, because new cases continue to arise. Keep this criticism distinct from rejecting every use of transmitted learning or every instance of reliance.

Example: Transmitting an opinion and treating it as a source (§252)

The passage distinguishes reporting an earlier jurist's judgement from deriving additional rulings as though that judgement were itself an independent source. The second move requires an argument about authority and competence that the first does not supply.

Try it before reading the feedback

1. Explain the condition governing a mujtahid's reliance in §251.
2. State why ongoing transmission alone does not satisfy §§253-254.

Feedback and assessment

1. Confidence in the more knowledgeable jurist must outweigh one's own probable judgement about the matter. The text does not grant unrestricted deference on every question.
2. Transmission preserves earlier conclusions, but the passage argues that unbounded new cases require living inquiry. The collective obligation must be discharged in each period.

Advanced - Research

Open this lesson online

Aim. Reconstruct the institutional argument for continuing expertise without turning a specific historical criticism into a blanket judgement on every school.

Ordered readings. §236 · §249 · §250 · §251 · §252 · §253 · §254

Connect three levels of the argument: the individual's justified trust in §249, the communal distribution of duties in §250, and the requirement for continuing inquiry in §§253-254. Ask how issue-specific competence in §236 affects that distribution. Distinguish what the text explicitly states from your proposed institutional implications.

Section 254 distinguishes attaining the rank of inquiry from actually practising it. This gives the argument a further dimension: possessing expertise is insufficient if the work remains undone. A comparison with another school's account requires its own primary passage and an analysis of what it permits by transmission, interpretation and derivation.

Example: Qualified but not practising (§254)

Ibn Rushd allows that someone might have attained the relevant rank while continuing to act only as a follower. His complaint concerns the discharge of the communal task, not simply the total absence of learned persons.

Try it before reading the feedback

1. Write a reconstruction showing why past expertise cannot permanently discharge the collective obligation.
2. Identify one institutional implication and label the inferential step that takes it beyond the explicit text.

Feedback and assessment

1. The argument joins continuing new cases with the requirement that someone perform the task in each period. Explain both premises rather than assuming that novelty alone proves the full conclusion.
2. A defensible implication remains tied to actual competence and performance. Do not use §§252-254 to condemn every later school practice without examining its account of sources, authority and qualified derivation.

Source concordance

This table covers every section assigned in the 84 lessons. Links open the online section. A = al-ʿAlawī (1994), printed Arabic pages. BA = Bou Akl (2015); the final two columns give the recorded starting printed Arabic and French pages, not a claim that the whole section fits on those pages.

The concordance is generated from the current reader's edition metadata. Consult the section's notes for textual restorations, interpretive qualifications, and the basis of any reported manuscript reading.

Reader	A: Arabic pp.	BA: sections	BA: Ar. start	BA: Fr. start
§1	34	1	118	119
§2	34-35	2	118	119
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§4	36	4	120	121
§5	36	5	120	121
§6	36-37	5-7	120	121
§7	37	8	122	123
§8	37	9	122	123
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§16	43	20	128	129
§17	44	21-24	128	129
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§60	60	75	160	161
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§133	91-92	159	222	223
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§135	92	161	222	223
§136	92-93	162	224	225
§137	93	163-164	224	225
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§199	121	244	280	281
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§243	141	295	314	315
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Sources and regeneration

Primary text: Ibn Rushd, al-Ḍarūrī fī uṣūl al-fiqh, edited by Jamāl al-Dīn al-ʿAlawī (1994). Comparator: Ziad Bou Akl, Averroès: le philosophe et la Loi (2015), Arabic-French edition and commentary. Application dossiers identify the relevant locations in Bidāyat al-mujtahid. Further comparisons specified as research tasks require their own verified source passages.

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